THE SERVICE TRIBUNALS ACT, 1973.

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THE SERVICE TRIBUNALS ACT, 1973.

[1]ACT NO. LXX OF 1973

[26th *September*, 1973]

An Act to provide for the establishment of Service Tribunals to exercise jurisdiction in respect of matters relating to the terms and conditions of service of civil servants.

WHEREAS it is expedient to provide for the establishment of Administrative Tribunals, to be called Service Tribunals, to exercise exclusive jurisdiction in respect of matters relating to the terms and conditions of service of civil servants, and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows: —

1. Short title, commencement and application. —(1) This Act may be called the Service Tribunals Act, 1973.

(2) It shall come into force at once.

(3) It applies to all civil servants wherever they may be.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

[2][(a) "civil servant" means a person who is, or has been, a civil servant within the meaning of the Civil Servants Act, 1973 (LXXI of 1973) [3][and shall include a person declared to be a Civil Servant under section 2A; and]]

(b) "Tribunal" means a Service Tribunal established under section 3.

[4][* * * * * * *]

3. Tribunals. —[5][(1) The President may, by notification in the official Gazette, establish one or more Service Tribunals as hereinafter provided and, where there are established more than one Tribunal, the President shall specify in the notification the territorial limits within which, or the class or classes or cases in respect of which, each such Tribunal shall exercise jurisdiction under this Act.]

(2) A Tribunal shall have exclusive jurisdiction in respect of matters relating to the terms and conditions of service of civil servants, including disciplinary matters.

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[1] For Statement of Objects and Reasons, see Gaz. of P., 1973, Ext., Pt. III p. 1479.

[2] Subs. by the Service T ribunals (Amdt.) Act, 1974 (31 of 1974). s. 2, for the original cl. (a).

[3] Added by the Service T ribunals (Amdt.) Act, 1997 (17 of 1997), s. 2.";

[4] Omitted by Act II of 2010 s. 2.

[5] Subs. by Act IV of 2014, s. 2.

[1][(3) A Tribunal shall consist of—

(b) a Chairman, being a person who has been, or is qualified to be judge of a High Court;

(c) such number of members not less than three, each of whom is or has been—

(i) a District Judge; or

(ii) a person who for a period of less than two years has held a post in BS-21 or above or equivalent under the Federal Government or a Provincial Government with adequate quasi-judicial or legal experience, preference being given to a person having background of dealing with service matters; or

(iii) an Advocate qualified for appointment as Judge of a High Court.]

[1][(4) The Chairman and members of a Tribunal shall be appointed by the President for non-extendable term of three years on such other terms and conditions as the President may determine:

Provided that where a serving District Judge or a civil servant is appointed as a member he shall hold office for a term of three years or till the date of superannuation, whichever is earlier.]

(5) The Chairman or a member of a Tribunal may resign his office by writing under his hand addressed to the President.

(6) The Chairman or a member of a Tribunal shall not hold any other office of profit in the service of Pakistan if his remuneration is thereby increased.

[1][(7) At any time when—

(i) the Chairman of a Tribunal is absent or is unable to perform the functions of his office due to any cause; or

(ii) office of the Chairman is vacant, the most senior of the other members of a Tribunal shall act as Chairman till the Chairman resumes his office or the regular Chairman is appointed as the case may be.]

[2]**[3A. Benches of the Tribunal.** —(1) The powers and functions of a Tribunal may be exercised or performed by Benches consisting of not less than two members of the Tribunal, including the Chairman, constituted by the Chairman.

(2) If the members of a Bench differ in opinion as to the decision to be given on any point,—

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[1]Subs. by Act IV of 2014,s.2.

[2]Section 3A ins. by Ord. 9 of 1978, s. 3.

(a) the point shall be decided according to the opinion of the majority;

(b) if the members are equally divided and the Chairman of the Tribunal is not himself a member of the Bench, the case shall be referred to the Chairman and the decision of the Tribunal shall be expressed in terms of the opinion of the Chairman; and

(c) if the members are equally divided and the Chairman of the Tribunal is himself a member of the Bench, the opinion of the Chairman shall prevail and the decision of the Tribunal shall be expressed in terms of the opinion of the Chairman.]

4. Appeals to tribunals.—(1) Any civil servant aggrieved by any [1][*] order, whether original or appellate, made by a departmental authority in respect of any of the terms and conditions of his service may, within thirty days of the communication of such order to him, [2][or within six months of the establishment of the appropriate Tribunal, whichever is later, prefer an appeal to the Tribunal]:

Provided that—

(a) where an appeal, review or representation to a departmental authority is provided under the [3][Civil Servants Act, 1973 (LXXI of 1973)], or any rules against any such order, no appeal shall lie to a Tribunal unless the aggrieved civil servant has preferred an appeal or application for review or representation to such departmental authority and a period of ninety days has elapsed from the date on which such appeal, application or representation was so preferred; [4]*

(b) no appeal shall lie to a Tribunal against an order or decision of a departmental authority determining the fitness or otherwise of a person to be appointed to or hold a particular post or to be promoted to a higher grader [5][; and]

[6][(c) no appeal shall lie to a Tribunal against an order or decision of a departmental authority made at any time before the 1st July, 1969.]

(2) Where the appeal is against an order or decision of a departmental authority imposing a departmental punishment or penalty on a civil servant, the appeal shall be preferred—

(a) in the case of a penalty of dismissal from service, removal from service, compulsory retirement or reduction to a lower post or time-scale or to a lower stage in a time-scale, to a Tribunal referred to in sub-section (3) of section 3; and

(b) in any other case, to a Tribunal referred to in subsection (7) of that section.

Explanation.— In this section, "departmental authority" means any authority, other than a Tribunal, which is competent to make an order in respect of any of the terms and conditions of civil servants.

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[1] Omitted by the Service Tribunals (Amdt.) Act, 1997 (17 of 1997), s. 4.

[2] Subs. by the Service Tribunals (Amdt.) Act, 1974 (31 of 1974), s. 3, for "prefer an appeal to the Tribunal having jurisdiction in the matter:.

[3] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.

[4] The word "and" omitted by Act 31 of 1974, s. 3.

[5] Subs. ibid., for full-stop.

[6] New cl. (c) added ibid.

[1]**[4A. Review**.— (1) A tribunal shall have the power to review its final order on a review petition field by an aggrieved party within thirty days of the order on the following grounds, namely:—

(i) discovery of new and important matter or evidence which, after exercise of due diligence, was not within knowledge of the petitioner or could not be produced by him at the time when the order was passed;

(ii) on account of some mistake or error apparent on the face of record; of

(iii) for any other sufficient cause.".

(2) The Tribunal shall decide the review petition within thirty days.

(3) The Tribunal may confirm, set aside, vary or modify the judgement or order under review.]

5. Powers of Tribunals. —(1) A Tribunal may, on appeal, confirm, set aside, varyor modify the order appealed against.

(2) A Tribunal shall, for the purpose of deciding any appeal, be deemed to be a civil court and shall have the same powers as are vested in such court under the Code of Civil Procedure, 1908 (Act V of 1908), including the powers of—

(a) enforcing the attendance of any person and examining him on oath;

(b) compelling the production of documents; and

(c) issuing commission for the examination of witnesses and documents.

[1][(3) A Tribunal shall have the power to execute its decisions in accordance with the procedure as may be prescribed.]

[1]**[5A. Financial powers of a Tribunal.—** (1) The Registrar of the Tribunal shall be the Principal Accounting Officer of a Tribunal.

(2) The Chairman of Tribunal may authorize re-appropriation of funds from one head of account to another head of account and sanction expenditure on any item from within the allocated budget in accordance with the prescribed procedure without reference to Ministry of Finance.]

6. Abatement of suits and other proceedings. All suits, appeals or applications regarding any matter within the jurisdiction of a Tribunal pending in any court immediately before the commencement of this Act shall abate forthwith:

Provided that any party to such a suit, appeal or application may, within ninety days of the [2][establishment of the appropriate Tribunal, prefer an appeal to it] in respect of any such matter which is in issue in such suit, appeal or application.

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[1]Ins, and added by Act IV of 2014, ss. 3-5.

[2] Subs. by the Service T ribunals (Amdt.) Act, 1974 (31 of 1974), s. 4, for "commencement of this Act, prefer an appeal to the appropriate Tribunal".

7. Limitation. The provisions of sections 5 and 12 of the Limitation Act, 1908 (IX of 1908), shall apply to appeals under this Act.

8. Rules.—(1) The Federal Government may, by notification in the Official Gazette, make [1]rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) requirements as to the number of members of the Tribunal necessary for hearings before, or order or decision by, a Tribunal; [2][or a Bench there of] [3][*]

(b) filling for a specified period any vacancy in the office of the Chairman or a member of the Tribunal caused by the absence on leave or otherwise of the Chairman or, as the case may be, a member [3][;and]

[3][(c) execution of decisions of a Tribunal.]

8. [Repeal] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVIIof 1981), s. 3 and Sch., 11.*

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[1] For the Service Tribunals (Qualifications of Members) Rules, 1974, see S.R.O. No. 742 (I)/ 74, dated 22-2-1974, Gaz. of., P1974., Ext., Pt. II, p. 263.
[2] Ins. by the Service Tribunals (Amdt.) Ordinance, 1978 (9 of 1978), s. 4.
[3]Omitted, subs and added by Act IV of 2014, s.6

THE SECRETARIAT ALLOWANCE (RESCISSION OF ORDERS, ETC.) ORDINANCE, 2000

CONTENTS

1. Short title, extent and commencement
2. Rescission of certain orders
3. Removals of difficulties

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THE SECRETARIAT ALLOWANCE (RESCISSION OF ORDERS, ETC.) ORDINANCE, 2000

ORDINANCE No. XII of 2000

[30th March, 2000]

An Ordinance to provide for rescission of certain orders relating to Secretariat Allowance

WHEREAS it is expedient to provide for rescission of certain orders relating to Secretariat Allowance granted to certain employees of the Federal Government and to provide for matters connected therewith and incidental thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 as amended;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of Proclamation of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 as amended as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Secretariat Allowance (Rescission of Orders, etc.) Ordinance, 2000.

(2) It shall come into force at once.

2. Rescission of certain orders.— (1) The orders, office memorandums, instructions and other instruments whereby the Secretariat Allowance was granted to certain Federal Government Employees in the Federal Secretariat, President's Secretariat, Prime Minister's Secretariat, National Assembly Secretariat, the Senate Secretariat and other organizations of the Federal Government and the orders, office memorandums, instructions and other instruments amending the aforesaid orders office memorandums, instructions and other instruments, hereinafter referred to as the orders, converting the Secretariat Allowance into Personal Allowance are hereby rescinded and shall be deemed always to have been so rescinded on the 1st July, 1988, and no financial benefit whatsoever, save and except as provided in sub-section (2), shall accrue or deemed to have accrued of become payable thereunder to the persons employed in the aforesaid Secretariats and other Organisations of the Federal Government notwithstanding any decision of any Court including a High Court and the Supreme Court.

(2) Any order made, instruction issued, decision of any Court including a High Court or the Supreme Court implemented immediately before the commencement of this Ordinance, shall be deemed to have been validly made, issued and implemented and the amount of Secretariat Allowance including Personal Allowance already paid thereunder shall be deemed to have been validly paid and shall not be recoverable from the recipients of such allowances.

3. Removals of difficulties.— If any difficulty arises in giving effect to the provisions of this Ordinance, the Federal Government may make such order as it may deem just and equitable to provide recompense for the benefit of the Federal Government Servants who were recipient of the Secretariat Allowance or the Personal Allowsance.

THE RESERVISTS (REINSTATEMENT IN CIVIL EMPLOYMENT) ORDINANCE, 1965

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1. Short title, extent and Commencement
2. Definition
3. Reinstatement of reservists called up for army service, etc.
4. Jurisdiction of courts barred
5. Power to make rules

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THE RESERVISTS (REINSTATEMENT IN CIVIL EMPLOYMENT) ORDINANCE, 1965

ORDINANCE NO. XXI OF 1965

[5*th* *June*, 1965]

AN

ORDINANCE

to provide for the reinstatement in civil employment of reservists called up for service or training in any of the Defence Services

WHEREAS it is expedient to provide for the reinstatement in civil employment of reservists called up for service or training in any of the Defence Services and matters ancillary thereto;

AND WHEREAS the national interest of Pakistan in relation to the achievement of uniformity within the meaning of clause (2) of Article 131 of the Constitution requires Central legislation in the matter;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 29 of the Constitution, and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and Commencement.—(1) This Ordinance may be called the Reservists (Reinstatement in Civil Employment) Ordinance, 1965.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

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2. Definition.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "employer" means any person who employs any other person, either directly or through another person, whether on behalf of himself or any other person, and includes Government and any corporation, institution or undertaking established or set up under any law or by or under the authority of Government;

(b) "reservist" has the same meaning as in the Pakistan (Army and Air Force) Reserves Act, 1950 (XLVII of 1950), and includes a person who is liable to be recalled after retirement, release or discharge to service or training under any rule or regulation made under the Pakistan Army Act, 1952 (XXXIX of 1952), the Pakistan Air Force Act, 1953 (VI of 1953) and the Pakistan Navy Ordinance, 1961(XXXV of 1961).

3. Reinstatement of reservists called up for army service, etc.—(1) Notwithstanding anything contained in any other law for the time being in force or in any contract or agreement, a reservist who has been called up for service or training whether before or after the commencement of this Ordinance shall, upon the termination of such service or training, be entitled to reinstatement in the employment from which he was released at the time he was called up and the employer shall reinstate such reservist in such employment or, if such reinstatement is less favourable to the reservist than that to which he would, in the ordinary course, have been entitled, give him such employment as is not so less favourable:

Provided that the employer shall not be required to reinstate or employ any reservist if he does not apply or report to the employer for the purpose within three months of his release from service or training.

(2) Where for any reason reinstatement or employment of a reservist under sub-section (1) is not practicable, the employer shall, within ten days from the date on which the reservist applies or reports himself for reinstatement or employment, make an application to the [2][Federal Government] or an authority empowered by it in this behalf for exemption from the provisions of sub-section (1) and send a copy thereof to such reservists.

(3) Upon an application under sub-section (2) the [1][Federal Government] or the authority empowered by it shall, after such enquiry and hearing as it considers necessary, make an order—

(*a*) exempting the employer from the provisions of sub-section (1) ; or

(*b*) requiring the employer to reinstate or give employment to the reservist on such terms and conditions as it may specify in the order.

(4) If any employer contravenes the provisions of sub-section (1) or fails or neglects to carry out an order under sub-section (3), he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both, and the court convicting him shall direct that the employer shall also pay as compensation to the reservist concerned an amount equal to six months' remuneration of the reservist at the rate to which he was entitled when he was released.

[2][(4A). Where the person guilty of an offence under this Ordinance is a company or other body corporate, every director, manager, secretary or other officer thereof who is, for the time being, competent to comply with the provisions of this Ordinance shall, unless he proves that he exercised all due diligence to prevent the commission of the offence, be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly.]

(5) No court inferior to that of a Magistrate of the first class invested with powers under section 30 of the Code of Criminal Procedure, 1898 (Act V of 1898) , shall try an offence under this section.

4. Jurisdiction of courts barred.—No order made or proceedings taken under this Ordinance shall be called in question in any court.

5. Power to make rules.—The [2][Federal Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Sub-section (4A) ins. by the Reservists (Reinstatement in Civil Employment) (Amdt.) ordinance, 1965 (XLVII of 1965), s. 2.

THE PROVINCIAL SERVICE TRIBUNALS (EXTENSION OF PROVISIONS OF THE CONSTITUTION) ACT, 1974

CONTENTS

1. Short title and commencement

2. Provisions of Article 212 (2) to extend to Provincial Service Tribunals

THE PROVINCIAL SERVICE TRIBUNALS (EXTENSION OF PROVISIONS OF THE CONSTITUTION) ACT, 1974

[1]ACT NO. XXXII OF 1974

[2nd *May*, 1974]

An Act to extend the provisions of clause (2) of Article 212 of the Constitution to the Provincial Service Tribunals.

WHEREAS the Provincial Assemblies for [2][Balochistan] the North-West Frontier Province, the Punjab and Sind have made in the form of resolutions the request that the provisions of clause (2) of Article 212 of the Constitution of the Islamic Republic of Pakistan be extended to the Service Tribunals respectively established under Acts of those Assemblies;

AND WHEREAS it is expedient to extend the said provisions to the said Service Tribunals;

It is hereby enacted as follows:—

1. Short title and commencement. —(1) This Act may be called the Provincial Service Tribunals (Extension of Provisions of the Constitution) Act, 1974.

(2) It shall come into force at once.

2. Provisions of Article 212 (2) to extend to Provincial Service Tribunals. The provisions of clause (2) of Article 212 of the Constitution of the Islamic Republic of Pakistan shall extend to the Service Tribunals respectively established under Acts of the [3][Provincial Assemblies for Balochistan,] the North-West Frontier Province, the Punjab and Sind.

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Last Uploaded on 2.11.2023

[1]For Statement of Objects and Reasons see Gaz. of P. 1974, Ext., Pt. III, p. 562.

[2]Ins. by the Provincial Service Tribunal (Extension of Provisions of the Constitution) (Amdt.) Act, 1976 (34 of 1976) s. 2.

[3]Subs. by the Provincial Service Tribunals (Extension of Provisions of the Constitution) (Amdt.) Act. 1976 (34 of 1976). s. 3. *For* "Provincial Assemblies".

THE PROVIDENT FUNDS ACT, 1925

CONTENTS

1. Short title, extent and commencement.
2. Definitions.
3. Protection of compulsory deposits.
4. Provisions regarding repayments.
5. Rights of nominees.
6. Power to make deductions.
7. Protection for acts done in good faith.
8. Power to apply the act to the provident Funds.
9. Savings as to estates of soldiers.
10. Repeals.

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THE PROVIDENT FUNDS ACT, 1925

[1]ACT No. XIX OF 1925

[*27th August, 1925*]

An Act to amend and consolidate the law relating to Government and other Provident Funds

WHEREAS it is expedient to amend and consolidate the law relating to Government and other Provident Funds;

It is hereby enacted as follows;—

1. Short title, extent and commencement.—(1) This Act may be called the Provident Funds Act, 1925.

[2][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date [3]as the [4][Federal Government] may, by notification in the [5][official Gazette], appoint.

2. Definitions. —In this Act, unless there is anything repugnant in the subject or context,—

(a) "compulsory deposit" means a subscription to, or deposit in, a Provident Fund which, under the rules of the Fund, is not, until the happening of some specified contingency, repayable on demand otherwise than for the purpose of the Payment of Premia in respect of a policy of life insurance [6][or the payment of subscriptions or premia in respect of a family pension fund], and includes any contribution [7][* * *] and any interest or increment which has accrued under the rules of the Fund on any such subscription, deposit or contribution, and also any such subscription, deposit, contribution, interest or increment remaining to the credit of the subscriber or depositor after the happening of any such contingency;

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(b) "contribution" means any amount credited in a Provident Fund, by [8][any authority administering the Fund], by way of addition to, [9][a subscription to, or deposit or balance at the credit of an individual account in], the Fund; and "contributory Provident Fund" means a Provident Fund the rules of which provide for the crediting of contributions;

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[1]This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P. and also extended to the Excluded Area of Upper Tanawal N.W.F.P. other than Phulera with effect from such date and subject to such modifications as may be notified.— *see* N.W.F.P. (Upper (Tanawal) Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950) : and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I. p. 1499.
The Act has been extended and shall be deemed to have been so extended on the 14th October, 1955, to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch.
original sub-section (2), as amended by A.O., 1949 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.8.

[3]The 1st April, 1926; *see* Gen. R. & O.

[4]Subs. by F.A.O., 1975, Art. 2 and Table.

[5]Subs. by A.O., 1937.

[6]Ins. by the Provident Funds (Amdt). Act, 1930 (I of 1930), s.2.

[7]Omitted., *ibid.*

[8]Subs. by the Provident Funds (Amdt.) Act, 1925 (XXVIII of 1925), s.2.

[9]Subs. by Act I of 1930, s.2.

(c) "dependant" means any of the following relatives of a deceased subscriber to, or a depositor in,a Provident Fund, namely, a wife, husband, parent, child, minor brother, unmarried sister and a deceased son's widow and child, and, where no parent of the subscriber or depositor is alive, a paternal grand-parent;

(d) "Government Provident Fund" means a Provident Fund, other than a Railway Provident Fund, constituted by the authority of [1][the Secretary of State, the [2][Federal Government], the Crown Representative or any Provincial Government] for any class or classes of [3][persons in the service of the State] or [4][of persons employed in educational institutions or employed by bodies existing solely for educational purposes], [5][and references in this Act to the Government shall be construed accordingly];

(e) "Provident Fund" means a fund in which subscriptions or deposits of any class or classes of employees are received and held on their individual accounts, and includes any contributions [6][* * *] and any interest or increment accruing on such subscriptions, deposits or contributions under the rules of the Fund;

[7][(f) "Railway administration" means—

(*i*) any company administering a railway or tramway in [8][Pakistan] [9][under a Pakistan law], or under contract with the [10][Government], or

[11][(*ii*) the manager of any railway or tramway administered by the Federal Government or the manager of any tramway administered by a Provincial Government; and].

(g) "Railway Provident Fund" means a Provident Fund constituted by the authority of a railway administration for any class or classes of its employees.

3. Protection of compulsory deposits.—(1) A compulsory deposit in any Government or Railway Provident Fund shall not in any way be capable of being assigned or charged and shall not be liable to attachment under any decree or order of any Civil, Revenue or Criminal Court in respect of any debt or liability incurred by the subscriber or depositor, and neither the Official Assignee nor any receiver appointed under the Provincial Insolvency Act, 1920 (V of 1920), shall be entitled to, or have any claim on, any such compulsory deposit.

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[1]Subs. by A.O., 1937.
[2]Subs. by F.A.O., 1975, Art. 2 and Table.
[3]Subs. by A.O., 1961, Art. 2 and Sch.
[4]Subs. by the Provident Funds (Amdt.) Act, 1927 (VII of 1927), s. 2.
[5]Ins. by A.O., 1937.
[6]Omitted by the Provident Funds (Amdt.) Act, 1930) (I of 1930), s.2.
[7]Subs. by A.O., 1937.
[8]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch.
[9]Subs. by A.O., 1961, Art, 2 and Sch.
[10]Subs, by A.O., 1961, Art, 2.
[11]Subs. by F.A.O., 1975, Art, 2 and Sch.

(2) Any sum standing to the credit of any subscriber to, or depositor in, any such Fund at the time of his decease and payable under the rules of the Fund to any dependant of the subscriber or depositor, or to such person as may be authorised by law to receive payment on his behalf, shall, subject to any deduction authorised by this Act and, save where the dependant is the widow or child of the subscriber or depositor, subject also to the rights of an assignee under an assignment made before the commencement of this Act, vest in the dependant, and shall, subject as aforesaid, be free from any debt or other liability incurred by the deceased or incurred by the dependant before the death of the subscriber or depositor.

4. Provisions regarding repayments.—(1) When under the rules of any Government or Railway Provident Fund the sum standing to the credit of any subscriber or depositor, or the balance thereof after the making of any deduction authorised by this Act, his become payable, the officer whose duty it is to make the payment shall pay the sum or balance, as the case may be, to the subscriber or depositor, or, if he is dead, shall—

(*a*) if the sum or balance, or any part thereof, vests in a dependant under the provisions of section 3, pay the same to the dependant or to such person as may be authorised by law to receive payment on his behalf; or

(*b*) if the whole sum or balance, as the case may be, does not exceed five thousand rupees, pay the same, or any part thereof, which is not payable under clause (*a*), to any person nominated to receive it under the rules of the Fund, or, if no person is so nominated, to any person appearing to him to be otherwise entitled to receive it ; or

(*c*) in the case of any sum or balance, or any part thereof, which is not payable to any person under clause (*a*) or clause (*b*) pay the same,—

(*i*) to any person nominated to receive it under the rules of the Fund, on production by such person of probate or letters of administration evidencing the grant to him of administration to the estate of the deceased or a certificate granted under the [1][Succession Act, 1925 (XXXIX of 1925)], or under the [2][Sind Regulation VIII of 1827], entitling the holder thereof to receive payment of such sum, balance or part, or

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(*ii*) where no person is so nominated, to any person who produces such probate, letters or certificate;

Provided that, where the whole or any part of any sum standing to the credit of the subscriber or depositor has been assigned to any other person before the commencement of this Act, and notice in writing of the assignment has been received by the officer from the assignee, the officer shall, after making any deduction authorised by this Act and any payment due under clause (*a*) to or on behalf of the widow or children of the subscriber or depositor—

(*i*) if the subscriber or depositor or, if he is dead, the person to whom in the absence of any valid assignment the sum or balance would be payable under this sub-section gives his consent in writing, pay the sum or part or the balance thereof, as the case may be, to the assignee, or

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Sch. II.
[2]Subs. *ibid.*

(*ii*) if such consent is not forthcoming, withhold payment of the sum, part or balance, as the case may be, pending a decision of a competent Civil Court as to the person entitled to receive it.

(2) The making of any payment authorised by sub-section (1) shall be a full discharge to the Government or the railway administration, as the case may be, from all liability in respect of so much of the sum standing to the credit of the subscriber or depositor as is equivalent to the amount so paid.

5. Rights of nominees.—[1][(1) Notwithstanding anything contained in any law for the time being in force or in any disposition, whether testamentary or otherwise, by a subscriber to, or depositor in, a Government or Railway Provident Fund of the sum standing to his credit in the Fund, or of any part thereof, where any nomination, duly made in accordance with the rules of the Fund, purports to confer upon any person the right to receive the whole or any part of such sum on the death of the subscriber or depositor occurring before the sum has become payable or before the sum, having become payable, has been paid, the said person shall, on the death as aforesaid of the subscriber or depositor, become entitled, to the exclusion of all other persons, to receive such sum or part thereof, as the case may be, unless—

(*a*) such nomination is at any time varied by another nomination made in like manner or expressly cancelled by notice given in the manner and to the authority prescribed by those rules, or

(*b*) such nomination at any time becomes invalid by reason of the happening of some contingency specified therein,—

and if the said person predeceases the subscriber or depositor, the nomination shall, so far as it relates to the right conferred upon the said person, become void and of no effect:

Provided that where provision has been-duly made in the nomination in accordance with the rules of the Fund, conferring upon some other person such right in the stead of the person deceased, such right shall, upon the decease as aforesaid of the said person, pass to such other person.]

(2) Notwithstanding anything contained in the [2][Succession Act, 1925 (XXXIX of 1925)], or the [3][Sind Regulation VIII of 1827], any [4][person, who becomes entitled as aforesaid, may be granted] a certificate under that Act, or that Regulation, as the case may be, entitling him to receive payment of such sum or part, and such certificate shall not be deemed to be invalidated or superseded by any grant to any other person of probate or letters of administration to the estate of the deceased.

[5][(3) The provisions of this section as amended by subsection (1) of section 2 of the Provident Funds (Amendment) Act, 1946 (XI of 1946), shall apply also to all such nominations made before the date of the commencement of that Act:

Provided that the provisions of this section as so amended shall not operate to affect any case, in which before the said date any sum has been paid, or has under the rules of the Fund become payable in pursuance of any nomination duly made in accordance with those rules.]

6. Power to make deductions. —When the sum standing to the credit of any subscriber or depositor in any Government or Railway Provident Fund which is a contributory Provident

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[1]Subs. by the Provident Funds (Amdt.) Act. 1946 (II of 1946), s. 2.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3, and Sch. II.
[3]Subs. *ibid.*
[4]Subs. by the Provident Funds (Amdt.) Act, 1946 (II of 1946), s.2.
[5]Sub-section (3) added, *ibid.*

Fund becomes payable, there may, if the authority [1][specified in this behalf in the rules of the Fund] so directs, be deducted therefrom and paid to [2][Government or the Railway Administration, as the case may be,]—

(*a*) any amount due under a liability incurred by the subscriber or depositor to [2][Government or the Railway Administration], but not exceeding in any case the total amount of any contributions credited to the account of the subscriber or depositor and of any interest or increment which has accrued on such contributions ; or

(*b*) where the subscriber or depositor has been dismissed from [3][his employment] for any reasons specified in this behalf in the rules of the Fund, or where he has resigned such employment within five years of the commencement thereof, the whole or any part of the amount of any such contributions, interest and increment.

7. Protection for acts done in good faith. —No suit or other legal proceeding shall lie against any person in respect of anything which is in good faith done or intended to be done under this Act.

[4][**8. Power to apply the act to the provident Funds.** — (1) The [5][appropriate Government] may, by notification in the [6][official Gazette], direct that the provisions of this Act shall apply [7]to any Provident Fund established for the benefit of its employees by any local authority within the meaning of the Local Authorities Loans Act, 1914 (IX of 1914), and, on the making of such declaration this Act shall apply accordingly, as if such Provident Fund were a Government Provident Fund and such local authority were the Government.

[8][(2) The [9][appropriate Government] may, by notification in the [10][official Gazette], direct that the provisions of this Act shall [11]apply to any Provident Fund established for the benefit of the employees of any of the institutions specified in the Schedule, or of any group of such institutions, and, on the making of such declaration, this Act shall apply accordingly, as if such Provident Fund were a Government Provident Fund and the authority having custody of the Fund were the Government:

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[1]Subs. by the Provident Funds (Amdt.) Act, 1925 (28 of 1925), s. 3.
[2]Subs. *ibid.*
[3]Subs. *ibid.*
[4]The original s. 8 was re-numbered as sub-section (1) of that section by the Provident Funds (Amdt.) Act, 1930 (I of 1930), s.3.
[5]Subs. by A.O., 1937.
[6]Subs. *ibid.*
[7]For extension of the provisions of this Act to Provident Funds established by local authorities, *see* Gen. R. & O.
[8]Sub-sections (2) and (3) ins. by Act. I of 1930, s.3
[9]Subs. by A.O., 1937.
[10]Subs. *ibid.*
[11]The provisions of this Act have been applied to the Provident Fund established for the benefits of the employees of —

(i) the Pakistan Industrial Credit and Investment Corporation Limited (*with effect from the 2nd October, 1957), see* Gaz. of P., 1958, Pt. I, p. 453;
(ii) the P.I.D.C. (*with effect from 1st October, 1958*), *see ibid.*, p.454;
(iii) the Agricultural Bank of Pakistan (*with effect from the 1st October, 1958*), *see* Gaz. of P., 1959, Pt. I, p. 347. ;
(iv) the Inter-University Board of Pakistan (*with effect from the 7th August, 1959*), *see* Gaz. of P., 1960, Pt. I, p. 371. ;
(v) the University of Karachi (*with effect from the 21st March, 1952*), *see* Gaz. of P., 1962, Pt. I, p.3 ;
(vi) the House Building Finance Corporation Limited (*with effect from the 1st January, 1954*), *see ibid.*, p. 514. ;
(vii) the Pakistan Security Printing Corporation Limited (*with effect from the 1st April, 1953), see* Gaz. of P., 1963, Pt. I, p. 298 ; and
(viii) the Pakistan Atomic Energy Council (*with effect from the 2nd May, 1959*), *see* Gaz. of P., 1964, Pt. I, p.102.;
(ix) the National Shipping Corporation (*with effect from 1st day of July, 1965*), *see* Gaz. of P., 1972, Ext. Pt. II, p. 1136, dt. 20th November, 1972.
(x)The Pakistan International Airlines Corporation (*with effect from 23rd Sept., 1974*),*see* Gaz. of P., 1975, Ext., Pt. II, page 22.

The provisions of this Act have been applied to the Contributory Provident Fund established for the benefit of the employees of the Investment Corporation of Pakistan, s*ee* Gaz. of P., 1975, Ext., (Islamabad), Pt. II, p. 1145.

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Provided that section 6 shall apply as if the authority making the contributions referred to in that section were the Government.

(3) The [1][appropriate Government] may, by notification in the [2][official Gazette], add to the Schedule the name of any public institution [3][it] may deem fit, and any such addition shall take effect as if it had been made by this Act.]

[4][(4) In this section "the appropriate Government" means—

(*a*) in relation to a cantonment authority, a port authority for a major port and any institution which, or the objects of which, appear to the [5][Federal Government] to fall within [6][the [7][Federal Legislative List in the Fourth Schedule] to the Constitution], the [5][Federal Government]; and

(*b*) in other cases, the Provincial Government.

Explanation.— **"**The Provincial Government" in relation to an institution registered under the Societies Registration Act, 1860 (XXI of 1860), means the Provincial Government of the Province in which the society is registered.]

9. [*Savings as to estates of soldiers.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981) s. 3 and Sch. II.*

10. [Repeals.] Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Schedule.

[8]THE SCHEDULE

LIST OF INSTITUTIONS

[See sub-section (2) or section 8]

[9][1. A Court of Wards].

2. A College affiliated to a University established by Statute.

[10][3. The Pakistan Red Cross Society].

4. The [11][*Punjab] University.

5. The State Bank of Pakistan.

6. The North-West Frontier Provincial Branch of the [12][Pakistan Red Cross Society].

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[1] Subs. by A.O., 1937.
[2]Subs. *ibid.*
[3]Subs. *ibid.*
[4]Sub-section (4) and *explanation* ins. *ibid.*
[5]Subs. by F.A.O., 1975, Art. 2 and Table.
[6]Subs. by A.O., 1964, Art. 2 and Sch.
[7]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981, (XXVII of 1981), s.3 and Sch. II.
[8]The Schedule containing items 1 to 7 were added originally by the Provident Funds (Amdt.) Act, 1930 (I of 1930), s.4.
[9]Subs. by A.O., 1949.
[10]Subs. by Ord. XXVII of 1981, s.3 and Sch. II.
[11]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 8.
[12]Subs. by Ord. XXVII of 1981, s. 3 and Sch. II.

[1][* * * * * * *]

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[2][8. The National Bank of Pakistan.]

[3][9. The Pakistan Industrial Finance Corporation.]

[4][10. The Pakistan Security Printing Corporation, Ltd.]

[5][11. The House Building Finance Corporation.]

12. The Agricultural Development Finance Corporation.

[6][13. The Pakistan Insurance Corporation.]

[7][14. The Pakistan Council of Scientific and Industrial Research.]

[8][15. The Pakistan Industrial Credit and Investment Corporation, Limited.]

[9][16.The Pakistan Industrial Development Corporation.]

[10][17. The Agricultural Bank of Pakistan.]

[11][18. The Telephone Industries of Pakistan, Limited.]

[12][19. The Inter-University Board of Pakistan.]

[13][20. The University of Karachi.]

[14][21. Pakistan Atomic Energy Council.]

[15][* * * * * * *]

[16][23. The Institute of Chartered Accountants of Pakistan.]

[18][24. The National Shipping Corporation.]

[19][25. Pakistan International Airlines Corporation.]

[20][26. The Investment Corporation of Pakistan.]

[21][27.

28.

29.

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[1]Item 7 omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3, and Sch. II.

[2]Added with effect from the 1st April 1950, by Notification No. 4185-RI/50, dated the 29th August, 1950, *see* Gaz. of P., 1950, Pt. I, p. 457.

[3]Added with effect from the 1st March, 1951, by the Ministry of Finance Notification No.F. 21(2)-RI/52, dated the 25th February, 1952, *see* Gaz. of P., 1952, Pt. I, p. 156.

[4]Item 10 was added with effect from the 1st April, 1953, by Notification no. 1670-/RI/54, *see* Gaz. of P. 1954, Pt.I, p. 99.

[5]Item 11 and 12 were added with effect from the 1st January, 1954, and the 15th July, 1952, respectively by Notification no. (13) D- 163-RI(3)/54, *see ibid.*, p. 180.

[6]Item 13 was ins. with effect from the 12th January, 1953, by Notification No. F. (17)24-RI/55, *see ibid.*, 1958, Pt.I, p. 142.

[7]Item 14 was added with effect from the 1st September, 1953, by Notification No. F5(1)/RI(3)/57, *see ibid.*, p. 160.

[9]Added with effect from the 2nd October, 1957, by Notification No. FI(115)-RI(3)/58, *see* Gaz. of P., 1958, Pt. I. p.454.

[10]Added with effect from the 1st October, 1957, by Notification No. I (202), RI (3)/58, *see ibid.*

[11]Added with effect from the 1st October, 1958, by Notification No. S.R.O 352, *see ibid.*, 1959, Pt. I, p. 347.

[12]Added with effect from the 30th December, 1959, by Notification No. TIP 3-2/54, *see ibid.*, 1960, Pt. I, p. 32.

[13]Added with effect from the 7th August, 1959, by Notification No. S.R.O 1037 (K), *see ibid.*, p. 372.

[14]Added with effect from the 21st March, 1952, by Notification No. S.R.O 7 (K)/62, *see ibid.*, 1962, Pt. I, p. 3.

[15]Added with effect from the 2nd May, 1959, by Notification No. S.R.O 228 (K)/64, *see ibid.*, 1964, Pt. I, p. 102.

[16]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II, which was previously added by S.R.O No. 1328 (K) /69, (*w.e.f.* 1st January 1963.)

[17]Added by S.R.O No. 563 (K) /70, dated 12th June, 1970.

[18]Added by S.R.O No. 1121 (I) /72, dated 25th October, 1972.

[19]Added by S.R.O No. 16 (I) /75, dated 20th December, 1975.

[20]Added by S.R.O No. 699 (I) /75, dated 18th June, 1975.

[21]Entries 27 to 29 are missing.

[1][30. The Habib Bank Limited.

31. The United Bank Limited.

32. The Muslim Commercial Bank Limited.

33. The Allied Bank of Pakistan Limited.

34. The Agricultural Development Bank of Pakistan.

35. The Industrial Development Bank of Pakistan.

36. The National Development Finance Corporation.

37. The National Investment Trust.

38. The Small Business Finance Corporation.

39. The Federal bank for Cooperatives.]

[2][40.The National Insurance Corporation.]

[3][41.Pakistan Space and Upper Atmosphere Research Commission.]

[4][42.Trading Corporation of Pakistan Limited.]

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[1]Added by S.R.O No. 37(I)/83, dated 12th January 1983.
[2]Added by S.R.O. No. 354 (I)/ 85, dated 14th April, 1985.
[3]Added by S.R.O. No. 701 (I)/ 87, dated 26th August, 1985.
[4]Added by S.R.O No. 159 (KE)/91 dated 2nd March 1991.

THE POPULATION WELFARE PLANNING PROGRAMME (APPOINTMENT AND TERMINATION OF SERVICE) ORDINANCE, 1981

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THE POPULATION WELFARE PLANNING PROGRAMME (APPOINTMENT AND TERMINATION OF SERVICE) ORDINANCE, 1981.

ORDINANCE No. XIV OF 1981

[11th May, 1981]

An Ordinance to provide for the restructuring and reorganisation of, and appointment of persons in, the Population Programme

WHEREAS it is expedient to provide for the restructuring and reorganisation of, and appointment of persons in, the Population Programme and for matters connected therewith or ancillary thereto :

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by Article 89 of the Constitution read with Article 2 of the Provisional Constitution Order, 1981 (C.M.L.A. Order No. 1 of 1981), the President is pleased to make and promulgate the following Ordinance:—

1. Short title, application and commencement.— (1) This Ordinance may be called the Population Welfare Planning Programme (Appointment and Termination of Service) Ordinance, 1981.

(2) It applies to all employees of the Council and the Boards including persons on deputation with the Council or a Board.

(3) It shall come into force at once.

2. Definitions. In his Ordinance, unless there is anything repugnant in the subject or context,—

(a) "appointing authority" means the President or an officer authorised by him in this behalf

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(b) "Board" means the Family Planning Board constituted under the Government of the Punjab, Services, General Administration and Information Department, Notification No. S.O.G-II-9-19/65, dated the 15th May, 1971, the Government of Sind, Services and General Administration and Information Department, Notification No. S.O.I. 295/70, dated the 22nd December, 1970 the Government of Baluchistan, Education, Health, Local Government, Social Welfare and Labour Department, Notification No.15/2/70-Health, dated the 15th December, 1970, or the Government of the North-West Frontier Province, Health, Education, Social Welfare Department, Notification No. 18/H&SW/70, dated the 23rd November, 1970, as the case may be;

(c) "Commission" means the Federal Public Service Commission;

(d) "Council" means the Pakistan Family Planning Council Constituted under the Government of Pakistan, Health Division, Resolution No.F.1-2/64-PPC, dated

the 30th June, 1965, and later called as Population Council vide Population Division Resolution No. F-2-66/77-Co-ord., dated 24th September, 1978, as amended from time to time;

(e) "Departmental Selection Committee" means a Committee constituted for the purpose of making selection for appointment to posts in the Population Programme under the Population Division;

(f) "Employee" means an employee of the Council or a Board appointed on temporary or ad hoc basis in the Population Programme on or after the 30th April, 1977, and paid from the Pakistan Family Planning Council Fund or the Provincial Population Planning Board Fund;

(g) "Population Programme" means the Population Planning Programme referred to in the former Population Planning Division Resolution No. F.10- 1/65-PPC, dated the 12th March, 1973 ; and

(h) "Prescribed" means prescribed by rules made under this Ordinance.

3. Appointment.— (1) The appointing authority may appoint an employee to a post in the Population Programme under the Population Division on the recommendations of the Commission or, as the case may be, the Departmental Selection Committee, in accordance with section 4.

(2) The employees appointed under sub-section (1) shall be deemed to be civil servants within the meaning of the Civil Servants Act, 1973 (LXXI of 1973)

4. Procedure for appointment.—(1) Notwithstanding anything contained in the Federal Public Service Commission Ordinance, 1977 (XLV of 1977) and the rules made thereunder or the Civil Servants Act, 1973, (LXXI of 1973) and the rules made thereunder, the appointing authority may refer the case of any employee, in the case of a person holding post in Grade 16 or above to the Commission and, in any other case, to the Departmental Selection Committee.

(2) The Commission or, as the case may be, the Departmental Selection Committee shall, on receipt of such reference in respect of an employee, test the employee and make a report to the appointing authority, as to whether he is fit to hold the post to which he was appointed, and if not, whether he is fit to hold any other post in an equivalent Grade, commensurate with his qualifications and experience.

5. Only employees to be appointed. For appointment to the posts under the Population Programme, only the employee and persons on deputation with the Council or a Board shall be eligible provided they possess such qualifications and experience as may be prescribed:

Provided that, if suitable employees and such persons are not available, the posts which remain unfilled after taking action under section 4 may be filled subsequently in accordance with the procedure laid down in or under the Civil Servants Act, 1973 (LXXI of 1973).

6. Termination of service. Notwithstanding anything contained in his terms and conditions of service, the services of an employee who [1][is not selected for appointment under section 3 or cannot be appointed] for want of a vacancy may be terminated by the appointing authority from such date as the appointing authority may in the public interest direct.

7. Terminal benefits. On termination of service under section 6, an employee shall be entitled to such benefits as may be prescribed.

8. Seniority.—(1) Seniority of persons appointed under section 3 shall be determined in a Grade from the date of appointment to that Grade in the Council or, as the case may be, the Board.

(2) Those appointed on the same date shall take seniority according to their date of birth.

9. Other service matters. Except as otherwise provided in this Ordinance, the terms and conditions of service of persons appointed under section 3 shall be governed by the Civil Servants Act, 1973 (LXXI of 1973) and the rules made or deemed to have been made thereunder.

10. Ordinance to over-ride other laws, etc. This Ordinance shall have effect, notwithstanding anything contained in any other law for the time being in force or in any judgment, decree or order of any court.

11. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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[1]Subs. and shall be deemed always to have been so subs. by the population Welfare Planning Programme (Appointment and Termination of Service) Ordinance, 1981 (21 of 1981), s. 2, for "cannot be appointed under section 3".

THE PENSIONS ACT, 1871

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THE PENSIONS ACT, 1871

[1]Act No. XXIII OF 1871

[*8th August, 1871*]

An Act to consolidate and amend the law relating to Pensions and Grants by Government of money or land-revenue

Preamble. WHEREAS it is expedient to consolidate and amend the law relating to pensions and grants by Government of money or land-revenue; It is hereby enacted as follows:—

PRELIMINARY

1. Short title. This Act may be called the Pensions Act, 1871.

Extent of Act. [2][It extends to the whole of Pakistan];

3* * * * * * *

4* * * * * * *

2. *[Enactments repealed. Saving of Rules] Rep. by the Repealing Act,* 1938 *(I of* 1938).

3. Interpretation section. In this Act, the expression "grant of money or land revenue" includes anything payable on the part of Government in respect of any right, privilege, perquisite or office.

[5][**3A**. **Definition.** The expression "the appropriate Government'' means, in relation to [6][Federal] pensions, the [7][Federal Government] and in relation to other pensions, the Provincial Government].

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1871, Pt. V, p. 141; for Proceedings in Council, *see ibid.,* 1871, Supplement, pp. 314, 401, 683, 1056, and 1147.
This Act has been declared in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s.3.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified; *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
This Act has been extended to the Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended by the Baluchistan States Union (Federal Laws) (Extension) (Second Amendment) Order, 1953 (G.G.O. 19 of 1953).
It has also been extended to the Khairpur State, *see* G.G.O. 5 of 1953, as amended by G.G.O. 24 of 1953.
This Act has been extended to the State of Bahawalpur, *see* the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O. 11 of 1953).
This Act and all rules, notifications, declarations, resolutions and orders made under it, have been extended to the State of Bahawalpur, *See* the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O.11 of 1953).
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), section 3 and 2nd Sch., for "It extends to [all the Provinces and the capital of the Federation]". The words in crotchets were subs., for "the whole of British India" by A.O., 1949, Arts. 3(2) and 4.
[3]The words "And it shall come into force on the date of the passing thereof" rep. by the Repealing and Amending Act, 1914 (10 of 1914).
[4]The words "but not so as to affect any suit in respect of a pension or grant of money or land-revenue which may have been instituted before such date" rep. by the Amending Act. 1891 (12 of 1891).
[5]Section 3A ins. by A.O., 1937.,
[6]Subs. by F.A.O., 1975 Art. 2 and Table, for "Central" which was subs. by A. 0., 1964, Art. 2 and Sch., for "federal".
[7]Subs. by F.A.O., 1975, Art 2 and Table, for "Central Government".

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II.—RIGHTS TO PENSIONS

4. Bar of suits relating to pensions. Except as hereinafter provided, no Civil Court shall entertain any suit relating to any pension or grant of money or land-revenue conferred or made by the [1][Federal Government] or any Provincial Government or any former Government, whatever may have been the consideration for any such pension or grant, and whatever may have been the nature of the payment, claim or right for which such pension or grant may have been substituted.

5. Claims to be made to collector or other authorized officer. Any person having a claim relating to any such pension or grant may prefer such claim to the Collector of the District or Deputy Commissioner or other officer authorized in this behalf by the [2][appropriate Government]; and such Collector, Deputy Commissioner or other officer shall dispose of such claim in accordance with such rules as the Chief Revenue-authority may, subject to the general control of the [2][appropriate Government], from time to time prescribe in this behalf.

6. Civil Court empowered to take cognizance of such claims. A Civil Court, otherwise competent to try the same, shall take cognizance of any such claim upon receiving a certificate from such Collector, Deputy Commissioner or other officer authorized in that behalf that the case may be so tried, but shall not make any order or decree in any suit whatever by which the liability of Government to pay any such pension or grant as aforesaid is affected directly or indirectly.

7. Pensions for lands held under grants in perpetuity. Nothing in sections 4 and 6 applies to—

[3]* * * * * * *

[4]pensions heretofore granted by Government in [5][the territories subject to the Lieutenant Governor of Bengal], either wholly or in part as an indemnity for loss sustained by the resumption by a Native Government of lands held under sanads purporting to confer a right in perpetuity. Such pensions shall not be liable to resumption on the death of the recipient, but every such pension shall be capable of alienation and descent, and may be sued for and recovered in the same manner as any other property.

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III.—MODE OF PAYMENT

8. **Payment to be made by Collector or other authorized officer.** All pensions or grants by Government of money or land-revenue shall be paid by the Collector or the Deputy Commissioner or other authorized officer, subject to such rules as may, from time to time, be prescribed by the Chief Controlling Revenue-authority.

9. Saving of rights of grantees of land-revenue. Nothing in sections 4 and 8 shall affect the right of a grantee of land-revenue, whose claim to such grant is admitted by Government, to recover such revenue from the persons liable to pay the same under any law for the time being in force for the recovery of the rent of land.

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[1]Subs. *ibid.,* for" Central Government" which had been subs. by the Federal Laws (Revision and Declaration) Act,1951 (26 of 1951), s. 4 and III Sch., for "British".
[2]Subs. by A. O., 1937, for" L. G".
[3]Clause (1) omitted by A. 0., 1949, Sch.
[4]The number and brackets "(2)" omitted, *ibid.*
[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and III Sch., for "The territories respectively subject to the Lieutenant -Governor of the Noth-Western Province."

10. Commutation of pension. The [1][appropriate Government] may, with the consent of the holder, order the whole or any part of his pension or grant of money or land-revenue to be commuted for a lump sum on such terms as may seem fit.

IV.—MISCELLANEOUS

[2]**11. Exemption of pension from attachment.** No pension granted or continued *by* Government on political considerations, or on account of past services or present infirmities or as a compassionate allowance, and no money due or to become due on account of any such pension or allowance, shall be liable to seizure, attachment or sequestration by process of any Court in [3][Pakistan], at the instance of a creditor, for any demand against the pensioner, or in satisfaction of a decree or order of any such Court.

[4][This section applies in [5][Pakistan] also to pensions granted or continued, [6]after the separation of Burma from India, by the Government of Burma.]

12. Assignments etc., in anticipation of pension, to be void. All assignments, agreements, orders, sales and securities of every kind made by the person entitled to any pension, pay or allowance mentioned in section 11, in respect of any money not payable at or before the making thereof, on account of any such pension, pay or allowance, or for giving or assigning any future interest therein, are null and void.

13. Reward to informers. Whoever proves to the satisfaction of the [1][appropriate Government] that any pension is fraudulently or unduly received by the person enjoying the benefit thereof shall be entitled to a reward equivalent to the amount of such pension for the period of six months.

14. Power to make rules. [4][In each Province] the Chief Controlling Revenue authority may, with the consent of the [1][appropriate Government], from time to time make rules consistent with this Act respecting all or any of the following matters:—

(l) the place and times at which, and the person to whom, any pension shall be paid;

(2) injuries into the identity of claimants;

(3) records to be kept on the subject of pensions;

(4) transmission of such records;

(5) correction of such records;

(6) delivery of certificates to pensioners;

(7) registers of such certificates;

THE PAKISTAN CODE

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[1]Subs. by A. 0., 1937, for "L. G.".
[2]*See* also s. 60, clause *(g)* of the Code of Civil Procedure, 1908 (Act 5 of 1908).
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), section 3 and 2nd Sch, (with effect from the 14th October, 1955), for" the Provinces and the Capital of the Federation" which was subs., for "British India" by A. O., 1949. Arts, 3(2) and 4.
[4]Ins. by A. 0., 1937.
[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for" the Provinces and the Capital of the Federation" which was subs., for "British India" by A. 0., 1949, Arts. 3(2) and 4. [3]*I.e.,* on or after the 1st April, 1937.

(8) reference to the Civil Court, under section 6, of persons claiming a right of succession to, or participation in, pensions or grants of money or land-revenue payable by Government;

and generally for the guidance of officers under this Act.

All such rules shall be published in the [1][official Gazette], and shall thereupon have the force of law.

SCHEDULE.—*[Rep. by the Repealing Act,* 1938 *(I of* 1938).]

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THE PAKISTAN CODE

Date: 16-09-2024

[1]Subs. by A. O., 1937, for" local official Gazette".

THE NATIONAL PRESS TRUST (APPOINTMENT OF CHAIRMAN) ACT, 1972

CONTENTS

1. Short title and commencement
2. Definitions
3. Act to override other laws
4. Appointment, resignation, etc., of Chairman of the National Press Trust
5. [Omitted]

THE PAKISTAN CODE

THE NATIONAL PRESS TRUST (APPOINTMENT OF CHAIRMAN) ACT, 1972

ACT NO. XIV OF 1972

[20th September, 1972]

An Act to provide for appointment of the Chairman of the National Press Trust.

WHEREAS it is expedient to provide for appointment of the Chairman of the National Press Trust and for matters ancillary thereto;

It is hereby enacted as follows :—

1. Short title and commencement.—(1) This Act may be called the National Press Trust (Appointment of Chairman) Act, 1972.

(2) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "National Press Trust" means the Trust of that name referred to in the Trust Deed;

(b) "Trust Deed" means the Deed made on the 8th day of April, 1964, by which the National Press Trust was declared;

(c) "Trust Fund" has the same meaning as in the Trust Deed.

3. Act to override other laws. The provisions of this Act shall have effect notwithstanding anything contained in any other law for the time being in force or in the Trust Deed or in the regulations, bye-laws or rules framed thereunder.

4. Appointment, resignation, etc., of Chairman of the National Press Trust.—(1) The President shall appoint a person of eminence, repute and integrity as the Chairman of the National Press Trust, hereinafter referred to as the Chairman.

(2) The Chairman shall hold office during the pleasure of the President and shall receive such remuneration and allowances to be paid from out of the income of the Trust Fund and be subject to such conditions as may be determined by the President.

(3) The Chairman may, by writing under his hand addressed to the President, resign his office.

(4) The person holding office as Chairman immediately before the commencement of this Act shall be deemed to have been appointed under sub-section (1) and the provisions of this Act shall apply to him accordingly.

5. [1]*[Omitted]*

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RGN Date:-22.04.2024

[1]*Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of 1981), s. 3 and Sch., II.*

THE MEDICAL OFFICERS (REGULARIZATION OF APPOINTMENTS) ACT, 1992

CONTENTS

1. Short title and commencement
2. Definition
3. Regularization of appointments of Medical Officer
4. Seniority

THE PAKISTAN CODE

THE MEDICAL OFFICERS (REGULARIZATION OF APPOINTMENTS) ACT, 1992

ACT NO. XVI OF 1992

An act to provide for the regularization of the appointments certain medical officers appointed on adhoc basis

WHEREAS it is expedient to provide or the regularization of the appointment of certain medical officers appointed on adhoc basis;

It is hereby enacted as follows :—

1. Short title and commencement.— (1) This Act may be called the Medical Officers (Regularization of Appointments) Act. 1992.

(2) It shall come into force at once.

2. Definition. In this Act, unless the context otherwise requires, "Medical Officers" mean (a) those appointed as Medical Officers in institutions under the Health Division, and (b) those appointed as RMOs in the National Institute of Cardiovascular Diseases.

3. Regularization of appointments of Medical Officer.— (1) Notwithstanding anything contained in the Civil Servants Act, 1973 (LXXI of 1973), or the rules made thereunder or the Federal Public Service Commission Ordinance, 1977 (XLV of 1977), or the rules made thereunder, a Medical Officer who was approved, at any time preceding the twelveth day of October, 1988, for appointment as Medical Officer on *adhoc* basis and is holding office as such at the commencement of this Act, shall, on an order being made by the Federal Government in that behalf, be deemed to have been appointed on regular basis in the cadre of Medical Officers in the Federal Government with effect from the date of the commencement of this Act.

THE PAKISTAN CODE

(2) An order under sub-section (1) shall not be made in respect of a person unless, in the opinion of the Committee referred to in sub-section (3), his character and antecedents have been verified as satisfactory and he holds or possesses the domicile, qualifications and experience, and is within the age limit, required for the office.

(3) The Committee shall consist of the Director General of Health, Government of Pakistan, who shall be its Chairman, the Joint Secretary (Administration), Health Division, and one nominee of the Establishment Division not below the rank of Joint Secretary.

4. Seniority.— (1) A medical officer whose appointment is regularized under this Act shall rank junior to a medical officer belonging to the same service or cadre who is—

(a) holding a post on regular basis at the commencement of this Act; and

(b) appointed on the recommendation of the Federal Public Service Commission made before the commencement of this Act.

(2) The *inter-se* seniority of the medical officers whose appointments are regularized under this Act shall, within the same service or cadre, be determined on the basis of their continuous appointment in such service on cadre;

Provided that, where the date of continuous appointment of two or more such officers in the same, the older in age shall rank senior to the younger in age.

THE PAKISTAN CODE

THE LOCAL AUTHORITIES PENSIONS AND GRATUITIES ACT, 1919

CONTENTS

1. Short title and extent
2. Definition
3. Power to grant extraordinary pensions and gratuities
4. Provision as to pensions and gratuities
5. Procedure

THE PAKISTAN CODE

THE LOCAL AUTHORITIES PENSIONS AND GRATUITIES ACT, 1919.

[1]ACT No. I OF 1919

[*26th February, 1919*]

An Act to extend the powers of local authorities in regard to the granting of pensions and gratuities.

WHEREAS it is expedient to extend the powers of local authorities in regard to the granting of pensions and gratuities;

It is hereby enacted as follows:-

1. Short title and extent.—(1) This Act may be called the.

[2][(2) It extends to the whole of Pakistan.]

2. Definition. In this Act "officer" means any person who has undertaken [3][service of the State] and who immediately prior to undertaking such service, was paid and employed solely by a local authority and, but for undertaking such service, would in the ordinary course have continued in such employment; [4][and the " appropriate Government " means, in relation to cantonment authorities and port authorities in major ports, the [5][Federal Government], and in relation to other authorities, the Provincial Government].

3. Power to grant extraordinary pensions and gratuities: Notwithstanding anything contained in any enactment or in any rule made thereunder regulating the powers of local authorities, and without prejudice to any powers conferred by or under any such enactment, a local authority may grant a pension or gratuity to any officer thereof who may, since the 4th day of August, 1914, have been wounded or otherwise incapacitated in [6][service of the State], and to the widow or child of any such officer who may have died in consequence of injuries received or illness contracted since the 4th day of August, 1914, in the course of such service.

4. Provision as to pensions and gratuities.—(1) Such pension or gratuity may be granted in addition to any pension or gratuity payable to the officer or his wife or child, as the case may be, under any general or special orders of [7]* * * [8][the [5][Federal Government] or any Provincial Government], but shall not, save with the sanction of the [9][appropriate Government], exceed the amount of the pension or gratuity to which the officer or his wife or child would have been entitled under any such orders if his employment by the local authority had been service for the same time and on the same pay [10][of the State].

[1]For Statement of Objects and Reasons, see Gazette of India, 1919, Pt. V, p. 18 ; and for Proceedings in Council, see ibid., 1919, Pt. VI, pp. 144, 145 and 197.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for the original sub-section (2) as amended by A. O., 1949, Arts. 3 (2) and 4.
[3]The original words the service of Government" were first subs. by A. O., 1937 and then amended by A. O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956), to read as above.
[4]Ins. by A. O., 1937
[5]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government"
[6]The original words "the service of Government" were first subs. by A. O., 1937 and then amended by A. O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956), to read as above.
[7]The original words "His Majesty in Council or of" omitted by A. O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[8]Subs. by A. O., 1937, for "the G G. in C. ".
[9]Subs. ibid., for "L. G." which had been subs. by the Devolution Act, 1920 (33 of 1920), s. 2 and Sch. I, for "G G. in C "
[10]Subs. by A. O , 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956), for "under the Crown" which had been Subs by A. O., 1937, for "under Government".

(2) Any pension granted under this Act may be made to take effect from such date subsequent to the 4th day of August, 1914, and subject to such conditions as the local authority may think fit.

5. **Procedure. S**ubject to the provisions of this Act, the decision of a local authority to grant a pension or gratuity thereunder shall be made in such manner and shall be subject to such sanction as may be prescribed by any enactment or rule regulating the grant by such local authority of pensions and gratuities:

Provided that in every case the sanction of the [1][appropriate Government] shall be necessary.

THE PAKISTAN CODE

Date: 11-09-2024

[1]Subs. by A. O., 1937, for "L. G.".

[2]For Statement of Objects and Reasons, see Gazette of India, 1919 Pt. V, p. 22 ; and for Proceedings in Council, see ibid., 1919, Pt. VI, pp. 170 and 872. This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.-W.F.P., subject to certain modifications ; and extended to the Excluded Area of Upper Tanawal (N: W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N: W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. 1, p. 1499.

THE KARACHI ELECTRIC SUPPLY CORPORATION (REMOVAL FROM SERVICE) ORDINANCE, 1999

CONTENTS

1. Short title and commencement

2. Removal of certain persons from service, etc.

THE PAKISTAN CODE

THE KARACHI ELECTRIC SUPPLY CORPORATION (REMOVAL FROM SERVICE) ORDINANCE, 1999

[1]ORDINANCE NO. XVII OF 1999

[24th September, 1999]

An Ordinance to provide for removal from service of the Karachi Electric Supply Corporation

WHEREAS it is expedient to provide for removal from the service of the Karachi Electric Supply Corporation for the purpose hereinafter appearing;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance ;—

1. Short title and commencement. —(1) This Ordinance may be called the Karachi Electric Supply Corporation (Removal from Service) Ordinance, 1999.

(2) It shall come into force at once.

2. Removal of certain persons from service, etc. —(1) Notwithstanding anything contained in any law, contract, settlement or award for the time being in force, or in the terms and conditions of service of any person employed by, or serving under, the Karachi Electric Supply Corporation, the Corporation may, at any time,—

(a) retire from its service any person without assigning any reason; or

(b) remove from its service any person after informing him in writing of the grounds on which such action is proposed to be taken and giving him an opportunity of showing cause against the action within fourteen days.

(2) Where a person is retired from service under subsection (1), he shall, in addition to the retiring benefits admissible to him under the terms and conditions of his service, if any, be paid additional pay for three months.

———

Date: 13-09-2024

[1]Shall not be subject to the limitation as to its duration prescribed in the Constitution, *see* P.C.O. (I of 1999), Art. 5A (I).

UNDER REVIEW

THE *EX*-GOVERNMENT SERVANTS (EMPLOYMENT WITH FOREIGN GOVERNMENTS) (PROHIBITION) ACT, 1966

CONTENTS

1. Short title, extend and commencement

2. Definitions

3. Prohibition of employment etc.

4. Penalty

THE PAKISTAN CODE

UNDER REVIEW

THE *EX*-GOVERNMENT SERVANTS (EMPLOYMENT WITH FOREIGN GOVERNMENTS) (PROHIBITION) ACT, 1966

[1]ACT No. XII of 1966

[7th July, 1966]

An Act to prohibit ex-Government servants from seeking or taking up employment with a foreign Government or foreign agency

WHEREAS in the interest of the security of Pakistan, it is expedient to prohibit *ex*-Government servants from seeking or taking up employment with a foreign Government or foreign agency;

AND WHEREAS the national interest in relation to the security of Pakistan requires Central legislation in the matter under clause (2) of Article 131 of the Constitution;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the *Ex*-Government Servants (Employment with Foreign Governments) (Prohibition) Act, 1966.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant, in the subject or context,—

(a) "*ex*-Government servant" means any person who was, at any time, appointed or employed as an officer or servant of the [2][Federal Government] or a Provincial Government and has ceased to be so appointed or employed;

(b) "foreign agency" means any office or establishment of the diplomatic or consular representative of a foreign Government by whatever name called, and includes any information, public relations, trade or commercial agency, service centre or foundation established or maintained by any such Government or by any person who is a national of a foreign country ; and

(c) "foreign Government" means the Government of a foreign country.

3. Prohibition of employment etc. — (1) No *ex*-Government servant shall, except with the previous permission in writing of the [2][Federal Government], [3][or a person or authority authorized by it in this behalf] seek or take up employment as an officer or servant of a foreign government or a foreign agency.

(2) No *ex*-Government servant who is, at the commencement of this Act, in the service of a foreign government or a foreign agency shall, except with the permission in writing of the [4][Federal Government], continue in such service after the expiry of three months from such commencement.

[5]**[4. Penalty.** Whoever contravenes the provisions of section 3 shall be punishable with imprisonment for a term which may extend to seven year, or with fine which may extend to fifty thousand rupees, or with forfeiture of property, or with any two or more of the said punishments.].

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[1] For Statement of Objects and reasons, see Gaz. of P., 1966, Ext., P. 335 (R)

[2] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

[3] Ins. by the *Ex*-Government Servants (Employment with Foreign Government) (Prohibition) (Amdt.) Ordinance, 1984 (29 of 1984), s.2.

[4] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government.

[5] Subs. by the *Ex*-Government Servants (Employment with Foreign Government) (Prohibition) (Amdt.) Ordinance, 1982 (11 of 1982), s. 2 for section 4.

THE EX-EMPLOYEES OF THE FORMER GOVERNMENT OF EAST PAKISTAN (APPOINTMENT TO FEDERAL POSTS) ORDINANCE, 1983

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Appointment
4. Seniority
5. Pension

THE PAKISTAN CODE

THE EX-EMPLOYEES OF THE FORMER GOVERNMENT OF EAST PAKISTAN (APPOINTMENT TO FEDERAL POSTS) ORDINANCE, 1983

ORDINANCE No. XI OF 1983

[25th May, 1983]

An Ordinance to provide for the appointment of former employees of the Government of East Pakistan to posts under the Federal Government.

WHEREAS it is expedient to provide for the appointment of former employees of the Government of East Pakistan to posts under the Federal Government;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Ex-Employees of the former Government of East Pakistan (Appointment to Federal Posts) Ordinance, 1983.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the sixteenth day of December, 1971.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "employee" means an employee of the former Government of East Pakistan who was repatriated or who migrated from East Pakistan to Pakistan during the period commencing on the 16th December, 1971, and ending on the 31st December, 1974, in consequence of occupation of the territory by enemy troops or establishment of Bangladesh ;

(b) "former post" means the post which was held by an employee at the time of his repatriation or migration to Pakistan;

(c) "Grade" means the Grade of the National Pay Scale in which a post or group of posts is placed; and

(d) "post" means a post in an All-Pakistan Service or a service of the Federation or a post in connection with the affairs of the Federation.

3. Appointment. An employee may, with the approval of the competent Authority, be appointed to an existing or supernumerary post in the Grade, as far as practicable, equivalent to the scale of the former post of such employee from the date he holds such post.

Explanation.— In this section, "competent authority", in relation to a post, means the authority competent under the Civil Servants Act, 1973 (LXXI of 1973), to make appointment to that post.

4. Seniority. The service rendered under the former Government of East Pakistan by an employee shall count towards seniority in the Grade of the post to which he may be appointed under section 3.

5. Pension. The service rendered under the former Government of East Pakistan, which qualified for pension under that Government by an employee who is appointed to a post under section 3 shall count for the purposes of pension under the Federal Government.

THE PAKISTAN CODE

THE EMPLOYMENT (RECORD OF SERVICES) ACT, 1951

CONTENTS

1. Short title, extent, application and commencement
2. Definitions
3. Exemptions
4. Service book to be produced by employee
5. Form of the service book
6. Entries in the service book
7. Power of Inspection
8. Penalty
9. Cognizance of offences
10. Prosecution
11. Protection of action taken under the Act
12. Power to make rules

THE PAKISTAN CODE

THE EMPLOYMENT (RECORD OF SERVICES) ACT, 1951

[1]ACT NO. XIX of 1951

[18th April, 1952]

An Act to make provision for compulsory maintenance of the record of service of persons in certain classes of employment in certain areas.

WHEREAS it is expedient to make provision for the compulsory maintenance of the record of service of persons in certain classes of employment in certain areas;

It is hereby enacted as follows: —

1. Short title, extent, application and commencement.—(1) This Act may be called the Employment (Record of Services) Act, 1951.

[2][(2) It extends to the whole of Pakistan.]

(3) It applies to all persons concerned as employers or employees in such classes of employment and in such areas as the [3][Provincial Government] may specify by notification in this behalf.

(4) It shall come into force on such date as the [3][Provincial Government] may, by notification in the official Gazette, appoints.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

[3][* * * * * * *]

(b) "employee" means a person to whom this Act applies engaged for hire or for any other pecuniary consideration by an employer, or an apprentice;

(c) "employer" means any person to whom this Act applies engaging the services—manual or clerical, skilled or unskilled—of another for hire or for any other pecuniary consideration or an apprentice for the purpose of carrying on his calling, trade, business, undertaking or manufacture or for personal or domestic service and includes any body of persons whether incorporated or not and any managing agent of any employer;

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[1]The Act has been extended to__
(i) the Baluchistan States Union, by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953).
(ii) the State of Bahawalpur by the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O. 11 of 1953) ; and
(iii) Khairpur State, by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. of 5 of 1953).
The Act has been and shall be deemed to have been brought into force in Gwadur (*with effect from the 8th September, 1958*), by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.
The Act has been brought into force throughout the Province of West of Pakistan (*with effect from the 15th August, 1961*), *see* Gazette of West Pakistan, 1961, Ext., p. 1855.
This Act has been applied to certain classes of employment throughout the Province of West Pakistan *see* Gazette of West Pakistan, 1961, Ext, p. 1855.
The Act has been applied to the Provincially Administered Tribal Areas or to the parts or those areas to which it does not already apply, *see* Regulation No. 1 of 1972, s. 2 and Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance No XXI of 1960, s. 3 and 2nd Sch.
[3]Subs. and omitted by A.O., 1964, Art. 2 and Sch.

(d) "Labour Commissioner" means the officer so designated and appointed by the [1][Provincial Government];

(e) "prescribed" means prescribed by rules made under this Act; and

(f) "wages" has the same meaning as in the Payment of Wages Act, 1936 (IV of 1936).

3. Exemptions. The [1][Provincial Government] may exempt from the provisions of this Act any establishment or undertaking where records of service are maintained to the satisfaction of the Government.

4. Service book to be produced by employee.—(1) Before engaging an employee the employer shall require from him his service book, if he asserts that he has been previously in employment under any other employer and the employee shall produce the service book if he has one.

[2][(2) If the employee has no service book, the employer shall, at his own cost, provide one and keep it with himself.]

(3) The service book [2][if any, produced by the employee under subsection (1)] shall be kept by the employer, who shall give the employee a receipt therefor in the prescribed form.

(4) Nothing in this section shall prevent an agreement between the employee and the employer whereby it is provided that the employee shall keep and maintain a duplicate of his service book.

(5) The employer shall hand over service book to the employee on the termination of the employee's service with the employer, except where the [2][employee] has kept and maintained a duplicate of his service book.

[2][(6) If the service book handed over to the employee under sub-section (5), or the duplicate thereof maintained by him, is lost by him, the employer shall provide him with a duplicate service book and may charge him the prescribed price.]

5. Form of the service book. The service book shall be of the size and in the form as may be prescribed and a passport size photo of the employee if a male shall be affixed to it. The service book shall contain particulars of identification of the employee, the name and other particulars of the persons under whom employed from time to time, period of employment, occupation, rate of wages including allowances, if any, leave taken and records of conduct and efficiency by employers.

6. Entries in the service book. The employer shall at the commencement of the employment and during the continuance of the same make such entries therein from time to time as are required by this Act and the rules made thereunder and he and the employee shall sign the entries as they are made.

7. Power of Inspection. The Labour Commissioner or an officer authorised by him in writing may by written notice require an employer or an employee to produce the service book or the duplicate service book or any other paper or document which he may have reason to believe contains the particulars noted in the service book and thereupon the employer or the employee, as the case may be, shall comply if he is in possession of the said book, paper or document.

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[1]Subs. by A.O., 1964, Art. 2 and Sch.
[2]Subs., ins and added by Ordinance No. XVIII of 1960, s. 2.

8. Penalty. Any breach of the provisions of this Act or the rules made thereunder shall be punishable in the case of an employer with fine which may extend to fifty rupees, and in the case of an employee with a fine which may extend to five rupees, and for the purposes of this section any failure or refusal to comply with a requirement duly made by a person empowered under this Act or under the rules made thereunder to make it shall be deemed to be a breach of the said provisions.

9. Cognizance of offences. No court shall take cognizance of an offence punishable under this Act unless previous sanction for prosecution has been accorded on the prescribed form by the Labour Commissioner and except upon complaint by any public servant or by a person authorised in this behalf by the Labour Commissioner in writing on the said form.

10. Prosecution. Any infringement of or refusal or omission to carry out the provisions of this Act or the rules made thereunder by any person may be reported to the Labour Commissioner or to any other officer appointed in this behalf by him by an order in writing for such local limits as may be assigned in the order, for sanction of prosecution or for such other action as he may deem proper to take.

11. Protection of action taken under the Act. No suit, prosecution or legal proceeding shall lie against any person in respect of anything in good faith done or intended to be done under this Act or the rules made thereunder.

12. Power to make rules.— (i) The [1][Provincial Government] may after previous publication, make rules for carrying into effect the purposes of this Act.

(ii) In particular and without prejudice to the generality of the foregoing power such rules may provide for—

(a) the form of the service book and the particulars to be entered therein ;

(b) the quality of paper and covering page of the service book;

(c) the number of pages of the book;

(d) the time within which any entry in the service book shall be made and the occasions on which a fresh entry shall be made;

(e) the authorisation of persons to manufacture and sell service books and prescribed forms;

(f) the procedure at any investigation and for proceeding before the grant of sanction for prosecution by the Labour Commissioner;

(g) the persons and class of public servants who may be authorised by the Labour Commissioner to make complaints under this Act, and

(h) the manner of calculation of monthly wages.

RGN Date: 22-05-2024

[1]Subs. by A.O., 1964, Art. 2 and Sch.

THE DORMANT FUNDS (ADMINISTRATION) ACT, 1966

CONTENTS

1. Short title and commencement

2. Vesting of dormant funds in the President and their utilisation

SCHEDULE

THE PAKISTAN CODE

THE DORMANT FUNDS (ADMINISTRATION) ACT, 1966

ACT No. XX OF 1966

[19th *December,* 1966]

An Act to provide for the administration of certain dormant funds and matters connected therewith

WHEREAS certain funds raised by public subscriptions and donations have been lying dormant ;

AND WHEREAS it is expedient to make provision for the administration and proper utilization and disposal of those funds ;

AND WHEREAS the national interest of Pakistan in relation to the achievement of uniformity within the meaning of clause (2) of Article 131 of the Constitution requires Central Legislation in the matter ;

It is hereby enacted as follows :—

1. Short title and commencement.— (1) This Act may be called the Dormant Funds (Administration) Act, 1966.

(2) It shall come into force at once.

2. Vesting of dormant funds in the President and their utilisation.— (1) Notwithstanding anything contained in any other law or instrument, the funds specified in the Schedule, together with interest and profit accruing thereon, shall vest forthwith in the President.

(2) The amounts in the aforesaid funds, other than that in the Palestine Aid Fund, shall be transferred to the President's Relief Fund instituted on the 16th May, 1965, and shall be utilised for purposes of relief or for purposes as nearly as possible, to those for which they were raised.

(3) The amount in the Palestine Aid Fund shall be utilised for the Palestine cause.

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THE SCHEDULE

	Name of the Fund	***Rs.***
(1)	Quaid-e-Azam Bihar Relief Fund	41,82,659.33
(2)	Palestine Aid Fund	7,06,151.36
(3)	Prime Minister's Refugee Hut Building Fund	3,09,254.30
(4)	Pakistan Fund	6,00,000.00
(5)	Muslim League Fund (India)	6,00,000.00

RGN Date:-29.03.2024

THE DISCONTINUANCE OF MEDICAL REIMBURSEMENT ACT, 1972

CONTENTS

1. Short title, extent and commencement
2. Discontinuance of reimbursement of medical expenses
3. Supply of medicines under certain conditions
4. [Omitted]

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THE DISCONTINUANCE OF MEDICAL REIMBURSEMENT ACT, 1972

ACT No. XXV OF 1972

[25th September, 1972]

An Act for the discontinuance of reimbursement of medical expenses incurred by Government servants and certain other employees

WHEREAS it is expedient to discontinue reimbursement of medical expenses incurred by Government servants and employees of other bodies in the manner hereinafter appearing;

AND WHEREAS the Proclamation of Emergency referred to in clause (8) of Article 139 of the Interim Constitution of the Islamic Republic of Pakistan is in force;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Discontinuance of Medical Reimbursement Act, 1972.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the 1st day of July, 1972.

(4) It shall apply to—

(i) all employees of the Federal and Provincial Governments whether serving in connection with affairs of the Federation or of a Province or on deputation to public corporations or statutory bodies; and

(ii) all other employees of public corporations and statutory bodies.

2. Discontinuance of reimbursement of medical expenses. Notwithstanding anything contained in any law, rule, order or any instrument or contract, but subject to the provisions of section 3, no employee to whom this Act applies shall be entitled to claim reimbursement for any medicine purchased by him for the treatment of himself or any member of his family, whether the medicines are prescribed by the authorised medical attendant or other medical authority.

3. Supply of medicines under certain conditions. An employee to whom this Act applies may be allowed to get medicines prescribed for him or any member of his family by the authorised medical attendant in accordance with any rules or orders made by his employer and within the limits of the funds allocated for the purpose in the budget of the department or body under which he is employed.

4. [1]*[Omitted]*

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RGN Date:-23.04.2024

[1]*Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of 1981), s. 3 and Sch., II.*

THE DISABLED PERSONS (EMPLOYMENT AND REHABILITATION) ORDINANCE, 1981.

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7. Meetings of the Councils
8. Duties of Secretary
9. Appointment of Committee
10. Establishments to employ disabled persons
11. Establishment to pay the fund
12. Registration of disabled persons
13. Establishment of training centers
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15. Power to debar further employment
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17. Fund
18. Power to exempt

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19. Delegation of power

20. Penalty

21. Cognizance of offences, etc.

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THE DISABLED PERSONS (EMPLOYMENT AND REHABILITATION) ORDINANCE, 1981.

ORDINANCE No. XL OF 1981

[*29th December, 1981*]

An Ordinance to provide for the employment, rehabilitation and welfare of disabled persons.

WHEREAS it is expedient to provide for the employment rehabilitation and welfare of disabled persons and for matters connected therewith.

AND WHEREAS the president is satisfied that circumstances exist which render it necessary to make immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Provisional Constitution Order, 1981 (C.M.L.A. Order No.1 of 1981), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1**. Short title, extent and commencement**.—(1) This Ordinance may be called the Disabled Persons (Employment and Rehabilitation) Ordinance, 1981.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such [1]day as the Federal Government may, by notification in the official Gazette, appoint.

2. Definitions. In this Ordinance unless there is anything repugnant in the subject or context,—

(a) "Chairman" means the Chairman of the National Council or, as the case may be, the Provincial Council;

(b) "commercial establishment" and "industrial establishment" shall have the same meaning as in the West Pakistan Industrial and Commercial Employment (Standing Orders) Ordinance, (W.P. Ordinance No. VI of 1968) 1968.

(c) "disabled person" means a person who, on account of injury, disease or congenital deformity, is handicapped for undertaking gainful profession or employment in order to earn his livelihood, and includes a person who is blind, deaf, physically handicapped or mentally retarded;

(d) "disease "includes the physical or mental condition arising from the imperfect development of any organ ;

(e) "employee " means a regular or whole-time employee whether employed on daily, weekly or monthly basis, and includes an apprentice;

[1] i.e., on the 28th April 1982, by S.R.O. 749(I)/82, dt. 28-4-1982, see Gaz., of P. 1982, Ext., Part II, p. 1275.

(f) "establishment" means a Government establishment, a commercial establishment or an industrial establishment, in which the number of workers employed at any time during a year is not less than one hundred ;

(g) "Fund" means the Rehabilitation of Disabled Persons Fund established under section 17 ;

(h) "Government establishment " includes any autonomous or semi-autonomous body, university, college, professional school and any organization controlled or managed by the Federal Government or a Provincial Government ;

(i) "National Council" means the National Council established under section 3;

(j) "prescribed " means prescribed by rules made by the Federal Government or, as the case may be, the Provincial Government ;

(k) "Provincial Council "means a Provincial Council established under section 5; and

(1) "Secretary "means the Secretary of the National Council or, as the case may be, the Provincial Council.

3. National council.—The Federal Government shall, by notification in the official Gazette, establish a Council to be called the National Council for the Rehabilitation of Disabled Persons consisting of the following members, namely :—

(a) the Secretary, Ministry of Health and Social Welfare, who shall also be its Chairman;

(b) One representative each of the three Armed Forces;

(c) One representative of the Manpower Division;

(d) One representative of the Labour Division;

(e) One representative of the Health Division;

(f) One representative of the Education Division;

(g) One representative of the Communications Division;

(h) One representative of the Ministry of Water and Power;

(i) One representative of the Ministry of Petroleum and Natural Resources;

(j) One representative of the Industries Division;

(k) One representative of the Planning Division;

(1) a nominee of the Administrator-General Zakat;

(m) four persons to be nominated by the Federal Government from amongst the persons engaged in the welfare of disabled persons;

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(n) one representative of the National Council of Social Welfare;

(o) one representative of the registered trade unions, to be nominated by the Labour Division; and

(p) the Deputy Secretary, Health and Social Welfare Division dealing with social welfare, who shall also be the Secretary of the National Council.

4. Functions of the national council.— (1) Subject to any directions given by the Federal Government, the National Council shall—

(a) formulate policy for the employment, rehabilitation and welfare of the disabled persons ;

(b) evaluate, assess and co-ordinate the execution of its policy by the Provincial Councils ; and

(c) have overall responsibility for the achievement of the purposes of this Ordinance.

(2) Without prejudice to the generality of the provisions of sub-section (1) the policy may relate to—

(a) the survey of the disabled persons in the country who are desirous of being rehabilitated ;

(b) the medical examination and treatment of the disabled persons ;

(c) the providing of training to the disabled persons ;

(d) the taking of such other measures as are necessary for carrying out the purposes of this Ordinance.

5. Provincial Councils. Each Provincial Government shall by notification in the official Gazette, establish a Council to be called the Provincial Council for the Rehabilitation of Disabled Persons consisting of the following members, namely:—

(a) the Secretary, Social Welfare Department, who shall also be its Chairman ;

(b) the Secretary, Labour Department ;

(c) one representative of the Planning and Development Department ;

(d) one representative of the Manpower Department ;

(e) one representative of the Health Department ;

(f) one representative of the Education Department ;

(g) one representative of the Communications Department ;

(h) one representative of the Water and Power Department ;

(i) one representative of the Chamber of Commerce ;

(j) Chief Administrator of Zakat ;

(k) one representative of the Social Welfare Council ;

(1) one representative of the Social Services Board ;

(m) one representative of the registered Trade Unions to be nominated by the Labour Department ;

(n) four persons nominated by the Provincial Government from amongst the persons engaged in the welfare Work of disabled persons ; and

(o) Director, Social Welfare Department, who shall also be the Secretary of the Provincial Council.

6. Functions of the Provincial Councils. Subject to any directions given by the National Council the Provincial Council shall—

(a) execute the Policy made by the National Council for the employment, rehabilitation and welfare of the disabled persons;

(b) undertake appropriate projects for these purposes;

(c) issue directions to the Employment exchanges and other bodies for the implementation of the projects; and

(d) from time to time take stock of the extent of functional disabilities of disabled persons.

7. Meetings of the Councils.— (1) The meetings of the National Council or a Provincial Council shall be held at such times and at such places as the Chairman thereof may direct and shall be presided over by such Chairman.

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(2) The meetings of the National Council or a Provincial Council shall be conducted in accordance with such procedure is may be prescribed, and until such procedure is prescribed, in such manner as the Chairman thereof may direct.

(3) The powers and functions of the Chairman shall, in his absence, be exercised and performed by such member of the National Council or the Provincial Council as the Chairman there of may appoint.

(4) The quorum to constitute a meeting of the National Council or a Provincial Council shall be four.

(5) All orders and decisions of the National Council or a Provincial Council shall be authenticated by the signature of the Chairman thereof or the persons authorised by him.

8. Duties of Secretary. The Secretary shall exercise such powers and perform such functions as may be assigned to him by the Chairman.

9. Appointment of Committee. The National Council or a Provincial Council may appoint such Committee consisting of such of its member as it thinks fit, and may refer to them any matter for consideration and report:

Provided that the Council may, if it considers necessary co-opt any person to a Committee.

10. Establishments to employ disabled persons.— (1) Not less than one percent of the total number persons employed by an establishment at any time shall be disabled persons whose names have been registered with the employment Exchange of the area in which such establishment is locate and against whose names in the register maintained under section 12 an endorsement exists to the effect that they are fit to work.

(2) The disabled persons employed against any post in pursuance of sub-section (1) shall be entitled to the terms and conditions which are not less favourable than those of the other persons employed by the establishment against similar posts.

(3) When calculating the percentage of the posts in an establishment for the purposes of employment of disabled persons, the fraction of 0.5 and above shall count as a whole number.

11. Establishment to pay to the Fund. An establishment which does not employ a disabled person as required by section 10 shall pay in to the Funds each month the sum of money it would have paid as salary or wages to a disabled person had he been employed.

12. Registration of disabled persons.—(1) Any disabled person desirous of being employed or otherwise rehabilitated may have his name registered in the register maintained by an Employment Exchange in such form and in such manner as may be prescribed by the Federal Government; and the Employment Exchange shall refer all names so registered to the Provincial Council.

(2) The Provincial Council shall, if it thinks necessary, cause each disabled person registered under sub-section (1) to be assessed as to the nature of his functional disability and also as to his aptitude and the nature of work he is fit to do by a medical officer authorised by it in his behalf or by such assessing board consisting of not less than one medical officer as it may appoint, and the medical officer or, as the case may be, the assessing board shall submit its report to the Provincial Council in such form as may be prescribed by the Provincial Government.

(3) If the disabled person is considered by the Provincial Council fit to work, it shall so inform the Employment Exchange, indicating the nature of work for which he may be employed or the trade or vocation in which he may be trained, and an endorsement to that effect shall be made against his name in the register.

(4) If the disabled person is not considered by the Provincial Council fit to work, the Provincial Council shall inform the Employment Exchange accordingly for an endorsement to that effect being made against his name in the register, and the Provincial Council shall take such measures for his rehabilitation as it thinks fit.

(5) If a person is declared by the Provincial Council not to be a disabled person, his name shall be struck off the register.

13. Establishment of training centers. The Provincial Council shall arrange for the training of disabled persons in such trades or vocations as it thinks fit, and shall establish training centres in such trades or vocations and in such manner as may be prescribed by the Provincial Government.

14. Establishments to furnish information. Every Establishment shall furnish to such person or authority such information required for the implementation of the provisions of this Ordinance in such form and in such manner as the National Council may, by notification in the official Gazette, specify.

15. Power to debar further employment.— (1) The Provincial Council may debar from further employment or training for such period as may be specified by it any disabled person who, without valid reason, refuses to accept or abandons his employment or training under this Ordinance of otherwise acts in a manner detrimental to the interests of the trade or profession in which he is employed or undergoing training.

(2) No disabled person shall be debarred under sub-section (1) unless he has been given an opportunity of being heard.

16. Appeal.— (1) Any person aggrieved by an order under section 15 may prefer an appeal to the National Council within thirty days of the date of the order.

(2) The National Council may call for the record of the case and may, after giving the parties an opportunity of being heard or after making such further enquiry as it thinks fit, stay or suspend the operation of the order or may pass such order as it thinks fit.

17. Fund. There shall be established by the Federal Government a Fund to be known as the Disabled Persons Rehabilitation Fund which shall comprise—

(a) all sums paid by the establishment under section 11;

(b) all grants if any made by the Federal Government, Provincial Governments or local bodies ; and

(c) donations, if any, made by private individuals.

(2) The Fund shall be administered by the National Council which shall, in consultation with the Federal Government, make such allocations to the Provincial Councils as it thinks necessary.

(3) The Fund shall be utilized for—

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(a) the establishment of training centres for disabled persons ;

(b) financial assistance to disabled persons who are not fit to undertake any employment ;

(c) disbursement of stipends or scholarships to disabled persons receiving training;

(d) the welfare of disabled persons ; and

(e) providing artificial limbs, surgical therapy and medical treatment to disabled person.

18. Power to exempt. The Federal Government may, by notification in the official Gazette, exempt any establishment or class of establishments from the operation of all or any of the provisions of this Ordinance.

19. Delegation of power.— (1) The National Council may delegate all or any of its powers under this Ordinance to any of its members or to a Provincial Council, subject to such conditions as it may specify.

(2) The Provincial Council may delegate all or any of its powers under this Ordinance, including any of the powers delegated to it under sub-section (1) to any of its members, subject to such conditions as it may specify.

20. Penalty. Any establishment which fails to pay into the Fund any sum it is required to pay under section 11 shall be punishable with fine which may extend to one thousand rupees and. in the case of non-payment of fine, with an additional fine which may extend to ten rupees for every day during which the payment of fine is not made.

21. Cognizance of offences, etc.— (1) No court inferior to that of a Magistrate of the first class shall try an offence punishable under this Ordinance.

(2) No court shall take cognizance of an offence punishable under this Ordinance except upon a complaint in writing made by, or under the authority of, the National Council or the Provincial council.

22. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) The Provincial Government may, by notification in the official Gazette, make rules not inconsistent with the rules made under sub-section (1) for carrying out the purposes of this Ordinance.

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THE CONTROLLER GENERAL OF ACCOUNTS (APPOINTMENT, FUNCTIONS AND POWERS) ORDINANCE, 2001

CONTENTS

1. Short title, extent and commencement.
2. Definitions.
3. Transfer of accounting functions.
4. Controller General of Accounts.
5. Functions of the Controller General.
6. Certain offices to work under the control of the Controller General.
7. Reports.
8. All accounting offices to assist and afford facilities.
9. Delegation of powers.
10. Terms and conditions of service of Provincial employees not to be adversely effected.
11. Power to make rules.
12. Power to make regulations.
13. Removal of difficulties.

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THE CONTROLLER GENERAL OF ACCOUNTS (APPOINTMENT, FUNCTIONS AND POWERS) ORDINANCE, 2001

ORDINANCE No. XXIV OF 2001

[1st July, 2001]

An
Ordinance

to provide for separation of accounting functions and appointment of Controller General of Accounts

WHEREAS it is expedient to provide for separation of accounting functions and appointment of Controller-General of Accounts and for matters connected therewith or incidental thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Controller-General of Accounts (Appointment, Functions and Powers) Ordinance, 2001.

(2) It extends to the whole of Pakistan.

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(3) It shall come into force on the first day of July, 2001.

2. Definitions.—(1) In this Ordinance, unless there is anything repugnant in the subject or context:—

(a) "appropriation accounts" means accounts relating to expenditure brought into account during a financial year to several items specified in the schedules of expenditure authenticated under the Budgetary, Provisions Order, 2000 (Chief Executive's Order No.6 of 2000).

(b) "Auditor General" means the Auditor-General of Pakistan appointed under Article 168 of the Constitution of the Islamic Republic of Pakistan;

(c) "Controller General" means the Controller-General of Accounts appointed under section 4; and

(d) "Finance Accounts" means the accounts exhibiting annual receipts and disbursements as well as balances of assets and liabilities of the Federal Government as on the thirtieth June of a financial year.

3. Transfer of accounting functions.— On the commencement of this Ordinance, the Auditor- General shall, by order published in the official Gazette, transfer accounting functions to the Controller-General of Accounts.

4. Controller General of Accounts.—There shall be a Controller General of Accounts who shall be appointed by the President from amongst the officers of the Accounts Group and shall be a BPS 22 officer.

5. Functions of the Controller General.— The functions of the Controller General shall be—

(a) to prepare and maintain the accounts of the Federation, the Provinces and district Governments in such forms and in accordance with such methods and principles as the Auditor-General may, with the approval of the President, prescribe from time to time;

(b) to authorise payments and withdrawals from the Consolidated Fund and Public Accounts of the Federal and Provincial Governments against approved budgetary provisions after pre-audited checks as the Auditor-General may, [1][with the approval of the president] from time to time, prescribe;

[1][Provided that in case of exigency Ministry of Finance or Finance Departments, as the case may be, may authorize payments directly from the State Bank of Pakistan and submit such information to Controller General to enable him to record the transactions;]

(c) to prepare and maintain accounts of such organizations and authorities established, set up or controlled by the Federation or Provinces as may be assigned to him by the President or, as the case may be, the Governor of a Province.

(d) to lay down the principles governing the internal financial control for Government departments in consultation with the Ministry of Finance and the Provincial Finance Departments as the case may be;

(e) to render advice on accounting procedure for new scheme, programmes or activities undertaken by the Government concerned;

(f) to submit accounts compiled by him or any other person responsible in that behalf, after the close of each financial year, to the Auditor-General, showing under the respective heads the annual receipts and disbursements for the purpose of Federation and of each Province within the time-frame prescribed by the Auditor-General;

(g) to provide, in so far as the accounts compiled by him permit, to the Federal Government or, as the case may be, the Provincial Government or, District Government such information as such Governments may from time to time require;

[1]Ins, Subs and added by Finance Act 2014, s. 6 (w.e.f. 1-2-2014).

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(h) develop and maintain an efficient system of pension, provident funds and other retirement benefits in consultation with the concerned Government;

(i) to co-ordinate and ensure resolution of audit observation of the Audit Department with the concerned department; and

(j) to prescribe syllabus, standards and provide facilities for the training of officers and staff under his administrative control.

6. Certain offices to work under the control of the Controller General.—(1) The Controller General shall have such offices as the Federal, Provincial and district levels and such officers working in these offices as tray be notified for this purpose by the Federal Government and the respective Provincial Government.

(2) Until such time the offices of the Controller General specified in subsection (1) are notified the following accounting organization shall work under the Controller General, namely:—

(a) the Accountant General of Pakistan Revenues and its sub-offices;

(b) the Military Accountant General and its sub-offices;

(c) the Offices of the Provincial Accountant General of each Province and the offices subordinate to them;

(d) the Chief Accounts Officers of the departmentalized accounting offices; and

(e) any other departmentalized accounting organizations as well as their sub-offices.

(3) The Controller General shall be the administrative head of all the offices subordinate to him with full authority for transfer and posting within his organization.

7. Reports.—From the accounts directly kept or maintained by him of by accounts officers subordinate to him, and from the accounts kept and maintained by other entities, including self-accounting entities, the Controller General shall—

(a) prepare each year the appropriation and finance accounts and such other accounts as may be prescribed by rules for submission to the Auditor-General on such dates as may be specified by him;

(b) prepare and submit to the Auditor-General for each financial year a Consolidated and General Financial Statement incorporating the summary of the accounts of the Federation, all provinces and district authorities. The Auditor-General, after authentication, shall forward the same to the Federal Government, Provincial Governments and district authorities.

(c) prepare and submit to the Federal, the respective Provincial Governments and the Auditor-General, statements and summaries of monthly or quarterly accounts as on such formats as may be prescribed by rules.

8. All accounting offices to assist and afford facilities.—All Accounting Offices shall afford all necessary facilities for efficient discharge and functioning of the office of Controller General.

9. Delegation of Powers.— The Controller General may, by general of special order, direct that all or any of his powers under this Ordinance shall, under such conditions, if any, as may be specified, be exercisable by any officer or officers of his organization.

10. Terms and conditions of service of Provincial employees not to be adversely effected.— Nothing contained in this Ordinance shall be, construed in any manner to impair or adversely affect the terms and conditions of service of the Provincial Government employees working in the' Provincial and District Accounts Offices.

11. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposed of this Ordinance.

12. Power to make regulations.—The Controller General may, with the previous approval of the Federal Government, by notification in the, official Gazette, make such regulations not inconsistent with the provisions of this Ordinance and the rules made thereunder, as he mad consider necessary or expedient for carrying out the purpose of this Ordinance.

13. Removal of difficulties.—If any difficulty arises in giving effect to any provisions of this Ordinance, the President may make such Order, not inconsistent with the provisions of this Ordinance, as may appear to him to be necessary for the purpose of removing the difficulty.

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THE CIVIL SERVANTS (VALIDATION OF RULES) ORDINANCE, 2001

CONTENTS

1. Short title and commencement

2. Validation of certain rules

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THE CIVIL SERVANTS (VALIDATION OF RULES) ORDINANCE, 2001

ORDINANCE NO. II OF 2001

[*9th January, 2001*]

An Ordinance to validate certain rules made under the Civil Servants Act, 1973 and certain actions taken thereunder

WHEREAS it is expedient to validate certain rules made under the Civil Servant Act, 1973 (LXXIII of 1973), for the purpose hereinafter appearing;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No.1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No.1 of1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.— (1) This Ordinance may be called the Civil Servants (Validation of Rules) Ordinance, 2001.

(2) It shall come into force at once.

2. Validation of certain rules.—(1) The Civil Servants Occupational Group and Services (Probation, Training and Seniority) Rules, 1990, the Civil Servants (Seniority) Rules, 1993 and the Civil Servants (Confirmation) Rules, 1993 and all notification amending the aforesaid Rules immediately before the commencement of this Ordinance are hereby affirmed and shall be deemed always to have been validly made.

(2) All orders made, proceedings taken, acts done, instructions issued, powers exercised, appointments made thereunder by any authority which were made, taken, done or purported to have been, made taken, done, issued, or exercised immediately before the commencement of this Ordinance shall be deemed to have been validly made, taken, done, issued or exercised and deemed always to have had effect accordingly.

THE AUDITOR GENERAL'S (FUNCTIONS, POWERS, TERMS AND CONDITIONS OF SERVICE) ORDINANCE, 2001

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THE AUDITOR GENERAL'S (FUNCTIONS, POWERS, TERMS AND CONDITIONS OF SERVICE) ORDINANCE, 2001

ORDINANCE No. XXIII OF 2001

*[*17th May, 2001*]*

An

Ordinance

to determine the terms and conditions of service, the term of office and the powers and functions of the Auditor-General of Pakistan

WHEREAS it is expedient to determine, the terms and conditions of service, the term of office and the powers and functions of the Auditor General of Pakistan and for matters connected therewith or incidental thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of. 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Auditor- General's (Functions, Powers and Terms and Conditions of Service) Ordinance, 2001.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on the first day of July, 2001.

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2. Definitions.—(1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "accounts" in relation to commercial undertakings of a Government, includes trading, manufacturing and profit and loss accounts and balance sheets and other subsidiary accounts;

(b) "Auditor-General" means the Auditor-General of Pakistan appointed under Article 168 of the Constitution of the Islamic Republic of Pakistan;

(c) "Controller General of Accounts" means the Controller General of Accounts appointed under the Controller General of Accounts (Appointment, Functions and Powers) Ordinance, 2001;

(d) "regulations" means regulation made under this Ordinance; and

(e) "rules" means rules made under this Ordinance.

3. Salary, pension etc.—The salary, pension and other terms and conditions of service of the Auditor General shall be as provided in the Schedule to this Ordinance.

4. Term of office.—The Auditor-General shall, unless he sooner resigns or is removed from office in accordance with the Constitution, hold office for a fixed term of five years from the date on which he assumes such office or he attains the age of sixty-five years whichever is earlier.

Explanation.— For the purpose of this section the term of five years in respect of the Auditor- General holding office immediately before the commencement of this Ordinance shall be computed from the date on which he had assumed office.

5. Resignation.—The Auditor-General may, at any time, by writing under his hand addressed to the President resign his office.

6. Leave.—(1) The Auditor-General may be granted leave on such terms and conditions as the President may, by order published in the official Gazette, prescribe.

(2) The power to grant or refuse leave to the Auditor-General, and revoke or curtail leave granted to him, shall vest in the President.

7. Auditor-General to certify accounts.—The Auditor-General shall, on the basis of such audit as he may consider appropriate and necessary, certify the accounts, compiled and prepared by Controller General of Accounts or any other person authorized in that behalf, for each financial year, showing under the respective heads the annual receipts and disbursements for the purpose of the Federation, of each Province and of each district, and shall submit the certified accounts with such notes, comments or recommendations as he may consider necessary to the President or the Governor of a Province or the designated District Authority, as the case may be.

8. Provisions relating to Audit.—The Auditor-General shall—

(a) audit all expenditure from the Consolidated Fund of the Federation and of each Province and to ascertain whether the moneys shown in the accounts as having been disbursed were legally available for, and applicable to, the service or purpose to which they have been applied or charged and whether the expenditure conforms to the authority which governs it;

(b) audit all transactions of the Federation and of the Provinces relating to Public Accounts;

(c) audit all trading, manufacturing, profit and loss accounts and balance sheets and other subsidiary accounts kept by Order of the President or of the Governor of a Province in any Federal or Provincial Department; and

(d) audit, subject to the provisions of this Ordinance, the accounts of any authority or body established by the Federation or a Province, and in each case to report on the expenditure, transactions or accounts so audited by him.

THE PAKISTAN CODE

9. Audit of receipts and expenditure of holders of authorities substantially financed by loans and grants.—Where any body or authority is substantially financed by loans or grants from Consolidated Fund of Federal Government or of any Province or of any district, the Auditor-General shall, subject to the provisions of any law for the time being in force applicable to the body or authority, as the case may be, audit the accounts of that body or authority.

Explanation.— Where the loans or grants to a body or authority from the Consolidated Fund of Federal Government or of any Province or of any District in a financial year is not less than five million rupees and the amount of such grant or loan is not less than fifty per cent of the total expenditure of that body or authority, such body or authority shall be' deemed, for the purposes of this section, to be substantially financed by such loans or grants as the case may be.

10. Auditor-General to give information and undertake studies, etc.— The Auditor-General shall, in so far as the accounts enable him so to do, give to the Federal Government, the Provincial Governments and the District Government, as the case may be, such information and to undertake such studies and analysis as they may, from time to time require.

11. Functions of Auditor-General in the case of grants or loans given to other authorities or bodies.— 1) Where any grant or loan is given for any specific purpose from the Consolidated Fund of Federal Government or of any Province or of any district to any authority or body, not being a foreign State or international organization, the Auditor-General may scrutinize the accounts by which the sanctioning authority satisfies itself as to the fulfillment of the conditions subject to which such grants or loans were given and for this purpose have the right of access, after giving reasonable previous notice, to the books and accounts of that authority or body:

Provided that the President, the Governor of a Province or the authority of a district, as the case may be, is of the opinion that it is not necessary to do so in the public interest.

(2) While exercising the powers conferred on him by sub-section (1), the Auditor-General shall not have right of access to the books and accounts of any authority or body if the law, by or under which such authority or body has been established, provides for the audit or the accounts of such authority or body by an agency other than the Auditor-General.

12. Audit of receipts of Federation or of Provinces or of districts.—The Auditor-General shall audit all receipts which are payable into the Consolidated Fund or Public Account of the Federal Government and of each Province and in the accounts of each district and to satisfy himself that all such receipts which are payable into the Consolidated Fund, Public Account or any district account have been properly and correctly deposited and rules and procedures relating to which receipts are being fully observed and the systems are in place to ensure proper assessment and collection of government receipts.

13. Audit on accounts of stores and stock.—The Auditor-General shall have authority to audit and report on the accounts of stores and stock kept in any office or department of the Federation or of a Province or of a district.

14. Powers of Auditor-General in connection with audit of accounts.—(1) The Auditor-General shall, in connection with the performance of his duties under this Ordinance, have authority—

(a) to inspect any office of the accounts, under the control of the Federation or of a Province or of a district, including treasuries, and such offices responsible for the keeping of initial or subsidiary accounts;

(b) to require that any accounts, books, papers and other documents which deal with, or form, the basis of or otherwise relevant to the transactions to which his duties in respect of audit extend, shall be sent to such place as he may direct for his inspection; and

(c) to enquire or make such observations as he may consider necessary, and to call for such information as he may require for the purpose of the audit.

(2) The officer incharge of any office or department shall afford all facilities and provide record for audit inspection and comply with requests for information in as complete a form as possible and with all reasonable expedition.

(3) Any person or authority hindering the auditorial functions of the Auditor-General regarding inspection of accounts shall be subject to disciplinary action under relevant Efficiency and Discipline Rules, applicable to such person.

15. Audit of companies and corporations established in the public sector.—(1) The Auditor-General shall perform functions and exercise powers in relation to the audit including supplementary audit of the accounts of the public sector companies in accordance with the provisions of the Companies Ordinance, 1984 (XLVII of 1984).

(2) The duties and powers of the Auditor-General in relation to the audit of the accounts of corporations (not being companies) established by, or under, law shall be performed and exercised by him in accordance with the provisions of the respective laws.

(3) The Governor of a Province or the district authority may, where he is of opinion that it is necessary in the public interest so to do, request the Auditor-General to audit the accounts of a corporation established under provincial law and where such request has been made, the Auditor-General shall audit the accounts of such corporation and shall have, for the purposes of such audit, right of access to the books and accounts of such corporation.

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16. Audit of accounts of certain authorities or bodies.—Save as otherwise provided, in section 11 where the audit of the accounts of any body or authority has not been entrusted to the Auditor—General by or under any law, he shall, if requested so to do by the President, or the Governor of a Province, as the case may be, undertake the audit of the accounts of such body or authority and shall have, for the purposes of such audit, right of access to the books and accounts of that body or authority.

17. Power to dispense with detailed audit.—The Auditor-General may dispense with, when circumstances so warrant, any part of detailed audit or any accounts or of transactions and to apply such limited check in relation to such accounts or transactions as he may determine [1][:]

[1][Provided that the Auditor-General shall exempt expenditure of secret service agencies certified by the Federal Government as relating to national security from the scope of the audit.]

[1]Subs., & Added by Finance Act, 2013 (XII of 2013), s.6.

18. Delegation of powers.—Any power exercisable by the Auditor General under the provisions of this Ordinance, or any other law may be exercised by such officer of his department as may be authorised by him in this behalf by general or special order.

19. Budgetary provisions.—The Auditor-General shall have the full powers to incur expenditures within the budgetary provisions.

[1][**19A. Sanction accorded by the Auditor-General.**—The President may appoint an independent officer to audit sanctions to expenditure accorded by the Auditor-General. The Auditor-General shall produce for inspection by that officer all books an other documents relating thereto and give him such information as he may require for the purpose of audit.]

20. Power to amend the Schedule.—The Federal Government may by notification in the official Gazette, amend the Schedule so as to add any entry thereto or modify or omit any entry therein.

21. Power to make rules.—The President may by notification in the official Gazette make rules for carrying out the purpose of this Ordinance.

22. Power to make regulations.—The Auditor-General may, with the previous approval of the Federal Government by notification in the official Gazette, make such regulations, not inconsistent with the provisions of this Ordinance and the rules made thereunder as he may consider necessary or expedient for carrying out the purpose of this Ordinance.

23. Repeal.—The Pakistan (Audit and Accounts) Order, 1973 (P.O. 21 of 1973) is hereby repealed.

THE SCHEDULE

[See section 3]

PAY, ALLOWANCES AND PENSION

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The Auditor-General shall be—

[2][(a) paid a fixed pay package equal to maximum of MP-I scale, as amended from time to time.]

(b) entitled to all such benefits including entitlement pertaining to travel, as are admissible to a Minister of State; and

[2][(c) Gratuity eqaul to one month's basic pay for each completed year of service as Auditor General of Pakistan.]

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[1]Ins. by Finance Act 2015, s. 7 (w.e.f. 1-7-2015).

[2]Subs. by SRO 930(c)/2015 dt. 8/9/2015.